

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
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	H	SPECIAL CONTRACT REQUIREMENTS					

OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

TCTS II/P6 Follow-On

A.1 CONTACT INFORMATION

Points of Contact for ALL Communications:

Andrea Gordon-Eubanks
Procuring Contract Officer
andrea.l.gordoneubanks.civ@us.navy.mil
(407)380-4389
Or

Kurt Susnis
Contract Specialist
kurt.a.susnis.civ@us.navy.mil
(407) 380-4243

A.2 - Contract Minimum/Maximum Quantities

As referred to in paragraph (b) of FAR 52.216-22 "Indefinite Quantity" of this contract, the contract minimum quantity is \$1000; the maximum quantity is \$ To Be Completed at time of award.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

B.1 - All CLIN unit quantities and cost and pricing information provided in the basic contract are for administrative purposes only and may be adjusted throughout the life of the ID/IQC contract unilaterally by the TCTS II/P6 Basic ID/IQC PCO. Actual delivery/task order CLIN pricing will be established at the time of delivery/task order award and will be reflected in the individual delivery/task order. The total not to exceed ceiling amount is To Be Completed at Contract Award for the ID/IQC contract.

B.2 - The numbering scheme for CLINS ordered will be determined on the respective order level. All items ordered will be numbered appropriately by the DO/TO PCO at that time. CLIN numbering on the DO/TO level does not need to mirror the ID/IQC CLIN numbering below, however all DO/TO CLINS shall make reference to the ID/IQC CLIN from which it is derived.

B.3 - Section J Attachment 18 contains the prices to be utilized throughout the ordering period of the ID/IQC. During the contract, the Government may unilaterally issue delivery orders for hardware with CLINS/SLINS derived from ID/IQC CLINS 0001, 0002, 0003 & 0005 below in accordance with 52.217-6, Option for Increased Quantity. Delivery Orders will be executed IAW Section H3 Ordering Procedures.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	AS Pod -- Light Configuration & End Item Cryptographic Unit PWS - 3.1.1.,3.4.1., 3.6 and associated subparagraphs SPS - 3.1.2.e, 3.2.1.1 Pricing IAW Section J Attachment 18 - Pricing Workbook Inspection/Acceptance IAW Section J Attachment 8 Pricing Arrangement: Firm Fixed Price		Each		
0002	Ground Subsystems PWS - 3.2.1.1, 3.2.1.2,3.2.1.3 and associated subparagraphs Ground Subsystem, Portable Support Equipment Subsystem, Remote Range Units SPS - 3.1.2.e, 3.3, 3.3.2,3.3.3.2, 3.3.4, 3.3.5, 3.4 End Item Cryptographic Unit PWS - 3.4 and associated subparagraphs SPS - 3.1.2.e Pricing IAW Section J Attachment 18 - Pricing Workbook Inspection/Acceptance IAW Section J Attachment 8 Pricing Arrangement: Firm Fixed Price		Each		
0003	Ancillary Mission Equipment PWS - 3.3.1 and associated subparagraphs Mission Operator Console SPS - 3.1.9, 3.1.19.2, 3.2 Dual Pod Shipping Containers Ballast Kits SPS - 3.2.1.1, 3.2.1.2 ASU-1 / ASU2 SPS - 3.2.3, 3.2.7		Each		

	Peculiar Support Equipment SPS - 3.3.1.8 DataRecording Devices 3.3.1.7 Pricing IAW Section J Attachment 18 - Pricing Workbook Inspection/Acceptance IAW Section J Attachment 8 Pricing Arrangement: Firm Fixed Price				
0004	Technical, Administrative, and Financial Data PWS - 3.4 and associated subparagraphs, 3.6 and associated subparagraphs Not Separately Priced IAW Exhibits A, B, C, D, E, F				
0005	Spares PWS - 3.4.1.1, 3.5.1, 3.6 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price		Each		
0006	Program Management PWS - 3.7 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0007	Systems Engineering and Non-recurring Engineering PWS - 3.8 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0008	Systems Engineering and Non-recurring Engineering PWS - 3.8 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Cost Plus Fixed Fee		Each		
0009	Cyber Engineering PWS - 3.9 and associated subparagraphs CDS Management, Cybersecurity, Cross Domain Solution Ruleset Updates, Lab Based Security Assessment - Development, Site Based Security Assessment		Each		

	Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price				
0010	Logistics PWS - 3.10 and associated subparagraphs Field Service Production Engineer, Technical Manuals, Training / Curriculum Site Survey, Site Install Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0011	Interim Contract Support PWS - 3.11 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0012	Depot Support PWS - 3.12 and associated subparagraphs Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0013	Technical Data Package PWS - 3.13 and associated subparagraphs IAW Exhibits A, B Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price		Each		
0014	Travel Pricing Arrangement: Cost No Fee		Each		
0015	Priced Data (In support of CLINS 0006-0012) IAW Exhibits A, B, C, D, E, F Pricing IAW Section J Attachment 18 - Pricing Workbook Pricing Arrangement: Firm Fixed Price				

Section C - Description/Specifications/Statement of Work

CLIN 0001

The Contractor shall furnish the supplies and services necessary for the production of Airborne Subsystems (AS) In Accordance With (IAW) the TCTS II PWS 3.1.1.1,3.1.2, 3.4.1.1, 3.6 and associated subparagraphs and SPS 3.1.2.e, 3.2.1.1. This includes an End Cryptographic Unit (ECU), but it is to be shipped separately as per instructions in individual delivery orders as it is a Cryptographically Controlled Item (CCI).

CLIN 0002

The Contractor shall furnish the supplies and services necessary for the production of the Ground Subsystems IAW the TCTS II PWS 3.2.1.1, 3.6 and associated subparagraphs and SPS 3.1.2.e, 3.3, 3.3.2,3.3.3.2, 3.3.4, 3.3.5, 3.4. The Ground Subsystems include the Ground Subsystem (GS), Portable Support Equipment Subsystem (PSES), and the Remote Range Unit (RRU) IAW TCTS II PWS 3.2.1.2. This includes an End Cryptographic Unit (ECU) IAW TCTS II PWS 3.2.1.3 and SPS 3.1.2.e, but it is to be shipped separately as per instructions in individual delivery orders as it is a Cryptographically Controlled Item (CCI).

CLIN 0003

The Contractor shall furnish the supplies and services necessary for the production of Ancillary Mission Equipment (AME) IAW the TCTS II PWS 3.3.1 and associated subparagraphs. This includes but not limited to Mission Operator's Console (MOC) IAW SPS 3.1.9,3.1.19.2, 3.2, Dual Pod Shipping Containers, Ballast Kits IAW SPS 3.2.1.1, 3.2.1.2, ASU-1 and ASU2 IAW SPS 3.2.3,3.2.7, Peculiar Support Equipment IAW SPS 3.3.1.8, and Data Recording Devices (DRD) IAW SPS 3.3.1.7.

CLIN 0004

The Contractor shall provide the data associated with CLINs 0001-0003, 0006-0012 IAW CDRLs A00A, A00B, A002, A005, A007, A009, A00A, A010, A011, A012, A013, A014, A015, A017, A018, A019, A022, A023, A024, A025, A029, A030, A031, A032, A033, A034, A035, A036, A037, A038, A039, A040, A041, A042, A043, A044, A045, A046, A047, A048, A049, A050, A051, A054, A055, A056, A057, A058, A064, A067, A069, A070, A072, A073, A074, A075, A076, A077, A078, A079, A080, A081, A082, A083, A084, A085, A086, A087, A088, A089, B001, B016, B017, B00F, B022, B028, B029, B030, B031, B032, B033, B034, B035, B043, B044, B045, B046, B047, B048, B049, B050, B051, B052, B053, B054, B055, B056, B057, B058, B059, B060, B063, B066, B068, B071, B074, B075, D001, D008, D011, D016, D021, D022, D023, D024, D027, D028, D030, D031, D032, D034. F001, F002, F004.

CLIN 0005

The Contractor shall furnish the supplies and services necessary for the production of Spares to support CLINs 0001-CLINS 0002 at the Shop Replaceable Assembly (SRA)/Line-Replaceable Unit (LRU) level IAW the TCTS II PWS 3.4.1.1, 3.5.1, 3.6, and associated subparagraphs.. This includes an End Cryptographic Unit (ECU), but it is to be shipped separately as it is a Cryptographically Controlled Item (CCI).

CLIN 0006

The Contractor shall perform Program Management services associated with the production, modernization, and sustainment of TCTS II/P6CTS assets IAW TCTS II PWS 3.7 and associated subparagraphs.

CLIN 0007

The Contractor shall perform System Engineering services associated with the production, modernization, and sustainment of TCTS II /P6CTS assets IAW TCTS II PWS 3.8 and associated subparagraphs.

CLIN 0008

The Contractor shall perform System Engineering services associated with the production, modernization, and sustainment of TCTS II /P6CTS assets IAW TCTS II PWS 3.8 and associated subparagraphs.

CLIN 0009

The Contractor shall perform Cyber Engineering services associated with the production, modernization, and sustainment of TCTS II /P6CTS assets IAW TCTS II PWS 3.9 and associated subparagraphs.

CLIN 0010

The Contractor shall perform Logistics services associated with the production, modernization, and sustainment of TCTS II/P6CTS assets IAW TCTS II PWS 3.10 and associated subparagraphs.

CLIN 0011

The Contractor shall perform all duties and functions associated with Interim Contractor Support (ICS) for depot support of TCTS II /P6CTS assets IAW TCTS II PWS 3.11 and associated subparagraphs.

CLIN 0012

The Contractor shall perform Depot support services associated with the production, modernization, and sustainment of TCTS II /P6CTS assets IAW TCTS II PWS 3.12 and associated subparagraphs.

CLIN 0013

The Contractor shall deliver the Technical Data Product associated with Special Tooling, Special Inspection, and Proposed Critical Manufacturing Process Descriptions under this CLIN, in accordance with TCTS II PWS 3.13 and associated subparagraphs and CDRLs A049, B036, B037, B038, B039, B040, B041, B049.

CLIN 0014

The Contractor shall Travel in support of all services associated with the production, modernization, and sustainment of the TCTS II /P6CTS program IAW TCTS II PWS 3.14.1.

CLIN 0015

The Contractor shall provide the data associated with CLINs 0006-0012 IAW CDRLs A059, A060, A061, A062, A063, B001, B002, B003, B004 , B005, B008, B009, B00A, B00B, B00C, B011, B012, B027, B061 B062, B064, B072, B073, B076, C001, C002, C005, C006, C007, C008, C009, C010, C011, D002, D003, D004, D005, D006, D007, D009, D010, D012, D014, D015, D017, D018, D020, D025, D026, D029 D033, E001, E002, E004, E005, E006, E007, F003, F005, F006, F007, F008, F009.

Requirements

TCTS II/P6

Section D - Packaging and Marking

SECTION D

CLIN 0001,0002 0003, and 0005

Marked: The supplies to be furnished hereunder shall be individually marked IAW with MIL-STD-130. Any individual drawing number marking requirements will be specified in the delivery order.

Packaging: The supplies to be furnished hereunder shall be packaged and marked IAW MIL-STD-129. Airborne Subsystems shall be shipped utilizing one time use wooden crates IAW Attachment 22 drawing #202507220. If specified in the delivery order, the contractor shall utilize Dual Pod Shipping Containers (NSN 8145017297131) Attachment 3 in accordance with MIL-STD-648 Department of Defense Design Criteria Standard: Specialized Shipping Containers.

Specific marking instructions to be provided on the delivery order level.

CLIN 0004, 0013, and 0015

Technical Data and Information to be furnished herein shall be adequately packaged, packed, and marked in accordance DTXT.247-9507, DTXT.247-9508, and in accordance with the DD Form 1423.

CLINS 0006 through 0012 and CLIN 0014

Packaging, Packing, and Marking do not apply.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

DTXT.247-9507 PACKAGING AND MARKING OF REPORTS (NAVAIR)

(Oct 2021)

(a) All unclassified data shall be prepared for shipment in accordance with best commercial practice. Classified reports, data and documentation, if any, shall be prepared for shipment in accordance with the National Industry Security Program Operating Manual, 32 CFR Part 117.

(b) The contractor shall prominently display on the cover of each report the following information:

- (1) Name and business address of contractor.
- (2) Contract Number/Delivery/Task order number.
- (3) Contract/Delivery/Task order dollar amount.
- (4) Whether the contract was competitively or non-competitively awarded.
- (5) Name of sponsoring individual.
- (6) Name and the address of requiring activity.

DTXT.247-9508 PROHIBITION AND LIMITATIONS FOR PACKAGING MATERIALS (NAVAIR) (Aug 2019)

The use of loose fill materials, asbestos, excelsior, newspaper and shredded paper (all types) are prohibited. In addition, all Wood Packaging Materials (WPM) shall be heat treated or chemically treated in accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15:2009, "Regulation of Wood Packaging Material in International Trade."

DTXT.247-9514 TECHNICAL DATA PACKING INSTRUCTIONS (NAVAIR)

(Feb 2025)

Technical Data and Information produced or handled in support of this contract shall be packed and packaged for domestic shipment in accordance with best commercial practices. The package or envelope should be clearly marked with any special markings specified in this contract (or delivery/task order), e.g., Contract Number, CLIN, Device No., and document title must be on the outside of the package. Classified reports, data and documentation, if applicable, shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulation Part 117, NIPSOM Rule.

Section E - Inspection and Acceptance

E.1 - In accordance with PWS para 3.3.1.2.3, Section J Attachment 3 is provided to give contractor inspection criteria for any Dual Pod Shipping Containers utilized during the performance of a delivery/task order, regardless of whether the containers are contractor procured or Government provided.

E.2 - In accordance with PWS para 3.10.26.2, Section J Attachment 8 is provided to give fidelity into the specific criteria the Government will utilize to facilitate Site Acceptance Testing for hardware deliveries against CLINS 0001, 0002 and 0003. Notwithstanding the items being procured and delivered on individual CLINS, the Government intends to perform acceptance testing on hardware deliveries as a completed system

E.3 - CLINS 0001-0015 will be Inspected at Destination, Inspected by Government, and Accepted at Destination.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-1	Contractor Inspection Requirements.	Apr 1984		
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		
52.246-16	Responsibility for Supplies.	Apr 1984		

FAR Clauses Incorporated by Full Text

52.246-11 Higher-Level Contract Quality Requirement. (Dec 2014)

Higher-Level Contract Quality Requirement (Dec 2014)

(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

Manufacturing Readiness Levels and timelines identified in IDIQ PWS 3.6.31 Manufacturing.

(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-

(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or

(2) When the technical requirements of a subcontract require-

(i) Control of such things as design, work operations, in-process control, testing, and inspection; or

(ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

ETXT.246-9512 INSPECTION AND ACCEPTANCE (NAVAIR) (Oct 2005)

(a) Inspection and acceptance of the supplies or services to be furnished hereunder shall be performed by [individual TBD on the order level].

(b) Acceptance of all Contract Line Items/Sub Line Items (CLINs/SLINs) shall be made by signature of the accepting authority on a DD Form 250 submitted through the WAWF system. Acceptance will only occur when the accepting authority is sure that inspections performed demonstrate compliance with contract requirements.

ETXT.246-9514 INSPECTION AND ACCEPTANCE OF TECHNICAL DATA AND INFORMATION (NAVAIR) (Feb 1995)

Inspection and acceptance of technical data and information will be performed by the Procuring Contracting Officer (PCO) or his duly authorized representative. Inspection of technical data and information will be performed by ensuring successful completion of

the requirements set forth in the DD Form 1423, Contract Data Requirements List (CDRL) and incorporation/resolution of Government review comments on the data items. Acceptance will be evidenced by execution of an unconditional DD Form 250, Material Inspection and Receiving Report, as appropriate, and/or upon receipt of a second endorsement acceptance by the PCO on the attachment to this contract entitled Attachment 12, Data Item Transmittal/Acceptance/Rejection Form. The attached form will not be used for high cost data such as drawings, specifications, and technical manuals.

ETXT.246-9517 CONSTRUCTIVE ACCEPTANCE PERIOD (NAVAIR)

(Mar 1999)

For the purpose of FAR Clause 52.232-25, "Prompt Payment", paragraph (a)(5)(i), Government acceptance shall be deemed to have occurred constructively on the [30] day after the contractor delivered the supplies or performed the services.

Section F - Deliveries or Performance

DELIVERY

CLINs 0001-0005

- 24 months after Delivery Order award..
- Locations to be provided on the order level

CLINs 0006-0015

- Delivery locations/schedule to be provided on the order level
- The below chart is system generated and currently reflects no information during the Request for Proposal phase. The chart will be populated at ID /IQC award.

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC	Special Handling/Notes
0001				FoB Details Contractor Destination
0002				FoB Details Contractor Destination
0003				FoB Details Contractor Destination
0004				FoB Details Contractor Destination
0005				FoB Details Contractor Destination

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-17	Government Delay of Work.	Apr 1984		
52.247-29	F.o.b. Origin.	Feb 2006		
52.247-30	F.o.b. Origin, Contractor's Facility.	Feb 2006		
52.247-34	F.o.b. Destination.	Jan 1991		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

FTXT.247-9505 TECHNICAL DATA AND INFORMATION (NAVAIR)

(Feb 1995)

Technical Data and Information shall be delivered in accordance with the requirements of the Contract Data Requirements List, DD Form 1423, Exhibit A, B, C, D, E, F, attached hereto, and the following:

(a) The contractor shall concurrently deliver technical data and information per DD Form 1423, Blocks 12 and 13 (date of first /subsequent submission) to all activities listed in Block 14 of the DD Form 1423 (distribution and addresses) for each item. Complete addresses for the abbreviations in Block 14 are shown in paragraph (g) below. Additionally, the technical data shall be delivered to the following cognizant codes, who are listed in Block 6 of the DD Form 1423.

(1) PCO, N61340 and/or FA8210.

(2) ACO, Code [TBD at contract award].

(b) Partial delivery of data is not acceptable unless specifically authorized on the DD Form 1423, or unless approved in writing by the PCO.

(c) The Government review period provided on the DD Form 1423 for each item commences upon receipt of all required data by the technical activity designated in Block 6.

(d) A copy of all other correspondence addressed to the Contracting Officer relating to data item requirements (i.e., status of delivery) shall also be provided to the codes reflected above and the technical activity responsible for the data item per Block 6, if not one of the activities listed above.

(e) The PCO reserves the right to issue unilateral modifications to change the destination codes and addresses for all technical data and information at no additional cost to the Government.

(f) Unless otherwise specified in writing, rejected data items shall be resubmitted within thirty (30) days after receipt of notice of rejection.

(g) DD Form 1423, Block 14 Mailing Addresses: [TBD on the individual order level]

FTXT.211-9506 PROVISIONED ITEMS (NAVAIR)

(Feb 1995)

Provisioned items shall be delivered in accordance with individual Provisioned Items Orders (PIOs) issued pursuant to 252.217-7027 . The Government may order provisioned items for a period of up to twelve (12) months following delivery of CLIN 0001.

Section G - Contract Administration Data

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

_____ TBD on the individual order level

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TBD on the individual order level

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table* (TBD on the individual order level)

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==

LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact, POC TBD on the individual order level.

For Navy WAWF questions call DFAS Customer Care 1-800-756-4571 option 6

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

GTXT.232-0001 PAYMENT INSTRUCTIONS (NAVAIR)

(May 2023)

For Government Use Only

Contract/Order Payment Clause	Type of Payment Request	Supply	Service	Construction	Payment Office Allocation Method
52.212-4 (Alt I), Contract Terms and Conditions - Commercial Products and Commercial Services; 52.216-7, Allowable Cost and Payment; 52.232-7, Payments Under Time-and-Materials and Labor-Hour Contracts	Cost Voucher	X	X	N/A	Line item specific proration. If there is more than one ACRN within a deliverable contract line item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the line item billed.

52.232-1, Payments, 252.217-7007, Payments (vessel repair and alterations)	Navy Shipbuilding Invoice (Fixed Price)	X	X	N/A	Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year.
52.232-1, Payments; 52.232-2, Payments Under Fixed-Price Research and Development Contracts; 52.232-3, Payments Under Personal Services Contracts; 52.232-4, Payments Under Transportation Contracts and Transportation-Related Services Contracts; and 52.232-6, Payments Under Communication Service Contracts With Common Carriers	Invoice	X	X	N/A	Line item specific proration. If there is more than one ACRN within a deliverable line item or deliverable subline item, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the deliverable line or deliverable subline item for which payment is requested.
52.232-5, Payments Under Fixed-Price Construction Contracts	Construction Payment Invoice	N/A	N/A	X	Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year.
52.232-16, Progress Payments (excluding contracts with multiple lot progress payments)	Progress Payment*	X	X	N/A	Contract-wide proration. Funds shall be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN. Progress payments are

					considered contract level financing, and the "contract price" shall reflect the fixed-price portion of the contract per FAR 32.501-3.
52.232-16, Progress Payments; 252.232-7018, Progress Payments-Multiple Lots	Progress Payment*	X	X	N/A	Lot-wide proration (applies to lots specifically identified in the contract). If there is more than one ACRN within a lot, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the lot for which payment is requested.
52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services; 52.232-30, Installment Payments for Commercial Products and Commercial Services	Commercial Product and Commercial Service Financing*	X	X	N/A	Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.207(b)(2).
52.232-32, Performance-Based Payments	Performance-Based Payments*	X	X	N/A	Specified in approved payment. The contracting officer shall specify the amount to be paid and the account (s) to be charged for each payment approval in accordance with FAR 32.1007(b)(2).
252.232-7002, Progress Payments for Foreign Military Sales Acquisitions	Progress Payment*	X	X	N/A	Allocate costs among line items and countries in a manner acceptable to the administrative contracting officer.

*Liquidation of Financing Payments. Liquidation will be applied by the payment office against those ACRNS which are identified by the payment instructions for the delivery payment and in keeping with the liquidation provision of the applicable contract financing clause (i.e., progress payment, performance -based payment, or commercial product and commercial service financing).

GTXT.201-9500 TECHNICAL POINT OF CONTACT (TPOC) (NAVAIR)

(Apr 2022)

(a) The Technical Point of Contact (TPOC) for this contract is: **[TBD on the individual order level]**

(b) This individual is not a Contracting Officer nor a Contracting Officer's Representative (COR)/Task Order COR (TOCOR) and has no authority to make changes, verbally or otherwise, to the existing contract or order. Further, no authority has been delegated to this individual by the Procuring Contracting Officer (PCO).

(c) The contractor may use this TPOC for technical questions related to the existing contract or order. Also, as a representative of the requiring activity, the TPOC may perform or assist in such areas as: base access forms, security related issues, IT access requirements, Contractor Performance Assessment Reporting System (CPARS), clarification of technical requirements, and statement of work inquiries.

(d) The contractor shall immediately notify the PCO in writing if the contractor interprets any action by the TPOC to be a change to the existing contract.

GTXT.242-9511 CONTRACT ADMINISTRATION DATA (NAVAIR)

(Nov 2017)

(a) Contract Administration Office.

(1) Contract administration functions (see FAR 42.302(a) and DFARS 242.302(a)) are assigned to: See the ADMINISTERED BY Block on the face page of the contract, modification, or order.

(b) Special Instructions (see FAR 42.202(b) and (c)):

(1) The following contract administration functions are retained (see FAR 42.302(a) and DFARS 242.302(a)):

Functions Retained	Retained for Performance By:
FAR 42.302(a) (3), (4), (59)	PCO
FAR 42.302(a)(40), (58)	TPOC
FAR 42.302(a)(44), (46)	TPOC/PCO

(2) The following additional contract administration functions are assigned (see FAR 42.302(b)):

Additional Functions	Retained for Performance By:
No additional functions	

(c) Inquiries regarding payment should be referred to: MyInvoice through the Wide Area Workflow eBusiness Suite: <https://wawf.eb.mil/>.

Section H - Special Contract Requirements

H.1 Delivery/Task Order Procedures

In accordance with FAR 16.504(a)(4), the following information is provided:

1. Contract Ordering Period and Order Type.

a. The TCTS/P6 Basic Indefinite Delivery/Indefinite Quantity Contract (ID/IQC) has an ordering period of five (5) years after the date of contract award with no option periods. The delivery date/period of performance for any Delivery Order/Task Order (DO/TO) issued may not exceed ten (10) years from the date of the TCTS /P6 Basic ID/IQC contract award.

b. The determination of whether Cost/Cost Plus Fixed Fee CLINs should be considered Completion or Term will be specified on the individual Delivery/Task Order level.

2. Attachment (18) Pricing

a. The unburdened labor rates, indirect rates, and fully burdened labor rates in Section J Attachment (18) are fixed for all orders issued under the ID /IQC. Any amount exceeding the rates specified in Section J Attachment (18) is an unallowable cost.

3. Ordering Procedures.

a. The following procedures are applicable to delivery orders comprised solely of supplies derived from Basic ID/IQC CLINs 0001, 0002, 0003, 0004, 0013, and/or 0015 utilizing the pricing IAW Section J Attachment 18 - Pricing Workbook:

- i. The Government will identify requirements and quantities outlined in the Section J Attachment 18 - Pricing Workbook .
- ii. The delivery date for all items ordered under CLINs 0001 - 0005 will be as stated in Section F of the ID/IQC.
- iii. The Government will order CDRL deliverables under CLINs 0013 and 0015 in terms of frequency. The creation and delivery, including any revisions contemplated in the DD1423 and that result from a rejected delivery, are a frequency of one for ordering purposes.
- iv. All orders utilizing this provision will be unilaterally awarded by an Authorized Contracting Officer.

b. The following procedures are applicable to ordering Field Technical Service Representative support utilizing the Pricing pricing IAW Section J Attachment 18 - Pricing Workbook:

- i. The Government will calculate an average monthly unit price by adding the monthly price for each month (based on the fiscal year of that month) then dividing by the total months in the period of performance ordered.
- ii. The Government will determine the number of months support needed to determine the period of performance for the CLIN.
- iii. All orders utilizing this provision will be unilaterally awarded by an Authorized Contracting Officer.

c. The following procedures are applicable to delivery/task orders that include products or services that are not pre-priced in the pricing IAW Section J Attachment 18 - Pricing Workbook :

- i. Upon identification of a requirement, the Government will develop the appropriate requirements documents in the form of a DO/TO Statement of Work (SOW) or Performance Work Statement including appropriate Basic ID/IQC PWS paragraph(s) to show clear scope linkage for each order.
- ii. The DO/TO SOW/PWS will be forwarded to the contractor as a request for proposal which will be negotiated utilizing the pricing provisions of FAR 15. For requirements ordered under CLINs 0006 - 0012, the contractor shall propose hours per labor category to complete the ordered requirements. The contractor may only propose labor categories and rates (labor category rates and indirect rates) identified in Attachment (18). Any ODC/materials costs shall be substantiated IAW FAR 15.4.
- iii. The contractor shall provide proposals to the DO/TO Procuring Contracting Officer (PCO) in accordance with the terms and conditions outlined in the Basic ID/IQC and following any specific proposal instructions provided by the DO PCO.

iv. For cost type DOs/TOs, the fixed fee will be calculated based on the negotiated hours per labor category and the labor category rates and indirect rates identified in Attachment (18) with installments IAW HTXT.232-9510.

d. Cumulative Quantity Price Adjustments for Joint Agency Orders

i. Applicability: This clause applies to all orders issued by the United States Air Force (USAF) and the United States Navy under this ID/IQC contract. The intent of this clause is to provide a price advantage to the Government for combined ordering needs.

ii. Price Adjustment for Subsequent Orders: If, within 60 calendar days following the date of award of an initial delivery order by one agency (the "Initial Order"), a separate delivery order is awarded by either the USAF or the Navy (the "Subsequent Order"), the prices for all items on both the Initial and Subsequent Orders shall be adjusted. The adjusted price for all items will be based on the cumulative quantity of items from both orders, as specified in the tiered pricing tables located in Section J, Attachment 18.

iii. Unilateral Modification for Price Adjustment: Upon award of a Subsequent Order that triggers a price adjustment under paragraph 3(a) of this clause, the Contracting Officer is authorized to unilaterally issue a modification to the Initial Order to reflect the lower, cumulative-quantity price.

e. All DOs issued are subject to the terms and conditions of the TCTS/P6 Basic ID/IQC inclusive of its Attachments & Exhibits which provide sufficient detail to reasonably describe the items the Government intends to acquire. In the event of a conflict between the Basic ID/IQC and any DO/TO, the Basic ID/IQC shall take precedence.

f. Individual DOs/TOs may incorporate additional applicable clauses not incorporated into the TCTS/P6 Basic ID/IQC and will modify clauses that require fill in language into the DO/TO. Such applicable clauses will only apply to the individual DO/TO.

g. Oral Orders against the TCTS/P6 Basic ID/IQC are not permitted.

4. Authorized Contracting Officers.

a. The following activities are designated as Contracting Offices/Officers authorized for issuing and administering any orders placed against the subject contract. These Contracting Officers may negotiate revisions/modifications to orders but only within the scope of the Basic ID/IQC:

i. All Procuring Contracting Officers (DoDAAC: N61340)

ii. All Procuring Contracting Officers (DoDAAC: FA8210)

b. Orders issued by authorized Contracting Officers must advise the TCTS/P6 Basic ID/IQC PCO within 30 days of issuance to facilitate monitoring of the Basic Contract Maximum Quantity outlined in paragraph (b) of FAR 52.216-22 . Additionally any requests for revisions/modifications to the Basic ID/IQC must be submitted to the TCTS/P6 Basic ID/IQC PCO for adjudication. The following individual is designated as the TCTS II/P6 Basic ID/IQC PCO:

i. Ms. Andrea Gordon-Eubanks

Naval Air Warfare Center Training Systems Division

12211 Science Drive

Orlando, FL 32826

andrea.l.gordoneubanks.civ@us.navy.mil

Additional Regulation or Supplemental Clauses Incorporated by Full Text

HTXT.232-9510 PAYMENT OF FIXED FEE (NAVAIR)

(Oct 2005)

(a) The fixed fee, as specified in Section B of this contract, subject to any adjustment required by other provisions of this contract, will be paid in installments. The fixed fee will be paid not more frequently than [to be specified on the individual order level] based on the allowable cost. The amount of each such installment shall be in the same ratio to the total fixed fee as the [to be specified on the individual order level]. Payment shall be made in accordance with FAR Clauses 52.216-7, "Allowable Cost and Payment", and 52.216-8, "Fixed Fee".

(b) In the event of termination of the work in accordance with the FAR Clause 52.232-22, "Limitation of Funds", the fixed fee shall be redetermined by mutual agreement equitably to reflect the reduction of the work performed. The amount by which such fixed fee is less than or exceeds payments previously made on account of fee, shall be paid to (or repaid by) the contractor.

- (c) The balance of the fixed fee shall be payable in accordance with other clauses of this contract.
- (d) For indefinite delivery type contracts the terms of this clause apply to each delivery/task order there under.

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-16	Preventing Personal Conflicts of Interest.	Jun 2020		
52.203-17	Contractor Employee Whistleblower Rights.	Nov 2023		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Feb 2026		
52.204-13	System for Award Management-Maintenance.	Feb 2026		
52.204-14	Service Contract Reporting Requirements.	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.208-90	Government Supply Sources.	Feb 2026		
52.209-4	First Article Approval-Government Testing. (Alternate II)	Sep 1989	Alternate II	Sep 1989
52.209-4	First Article Approval-Government Testing. (Alternate I)	Feb 2026	Alternate I	Jan 1997
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded.	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations.	Feb 2026		
52.210-1	Market Research.	Feb 2026		
52.211-5	Material Requirements.	Feb 2026		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation.	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format.	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data-Modifications.	Feb 2026		
52.215-12	Subcontractor Certified Cost or Pricing Data.	Feb 2026		
52.215-13	Subcontractor Certified Cost or Pricing Data-Modifications.	Feb 2026		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.215-15	Pension Adjustments and Asset Reversions.	Feb 2026		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Feb 2026		
52.215-19	Notification of Ownership Changes.	Feb 2026		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications.	Feb 2026		
52.215-23	Limitations on Pass-Through Charges. (Alternate I)	Feb 2026	Alternate I	Oct 2009
52.216-7	Allowable Cost and Payment. (Alternate I)	Aug 2018	Alternate I	Feb 1997
52.216-8	Fixed Fee.	Jun 2011		
52.216-11	Cost Contract-No Fee.	Apr 1984		
52.219-8	Utilization of Small Business Concerns.	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.219-16	Liquidated Damages-Subcontracting Plan.	Feb 2026		
52.222-3	Convict Labor.	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation.	Feb 2026		
52.222-19	Child Labor-Cooperation with Authorities and Remedies.	Feb 2026		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment.	Feb 2026		
52.222-35	Equal Opportunity for Veterans.	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities.	Feb 2026		
52.222-37	Employment Reports on Veterans.	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010		

52.222-50	Combating Trafficking in Persons.	Feb 2026		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent. (Alternate I)	Jun 2020	Alternate I	Apr 1984
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.227-10	Filing of Patent Applications-Classified Subject Matter.	Dec 2007		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.230-2	Cost Accounting Standards.	Feb 2026		
52.230-6	Administration of Cost Accounting Standards.	Feb 2026		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-20	Limitation of Cost.	Feb 2026		
52.232-22	Limitation of Funds.	Feb 2026		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	Feb 2026		
52.233-3	Protest after Award. (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-4	Applicable Law for Breach of Contract Claim.	Feb 2026		
52.234-1	Industrial Resources Developed Under Title III of the Defense Production Act.	Feb 2026		
52.237-3	Continuity of Services.	Jan 1991		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-2	Production Progress Reports.	Apr 1991		
52.242-3	Penalties for Unallowable Costs.	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed Price.	Feb 2026		
52.243-2	Changes-Cost-Reimbursement.	Feb 2026		
52.243-6	Change Order Accounting.	Feb 2026		
52.244-2	Subcontracts. (Alternate I)	Jun 2020	Alternate I	Jun 2020
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.247-15	Contractor Responsibility for Loading and Unloading.	Apr 1984		
52.247-68	Report of Shipment (REPSHIP).	Feb 2006		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-4	Termination for Convenience of the Government (Services) (Short Form).	Apr 1984		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.249-14	Excusable Delays.	Apr 1984		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		

252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.215-7015	Program Should-Cost Review.	Nov 2019		
252.216-7009	Allowability of Legal Costs Incurred in Connection with a Whistleblower Proceeding.	Dec 2022		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7007	Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.	Dec 2018		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7013	Duty-Free Entry.	Aug 2025		
252.225-7015	Restriction on Acquisition of Hand or Measuring Tools.	Jun 2005		
252.225-7016	Restriction on Acquisition of Ball and Roller Bearings.	Jan 2023		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7027	Deferred Ordering of Technical Data or Computer Software.	Apr 1988		
252.227-7038	Patent Rights-Ownership by the Contractor (Large Business)	Jun 2012		
252.227-7990	Technical Data--Commercial Products and Commercial Services. ALTERNATE I (DEVIATION 2026-O0036)	Feb 2026	Alternate I Deviation 2026-O0036	Feb 2026 Feb 2026
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7994	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7995	Deferred Ordering of Technical Data or Computer Software. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7996	Technical Data--Withholding of Payment. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7997	Validation of Asserted Restrictions. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.239-7000	Protection Against Compromising Emanations.	Oct 2019		
252.239-7001	Information Assurance Contractor Training and Certification.	Jan 2008		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.239-7018	Supply Chain Risk.	Dec 2022		
252.242-7004	Material Management and Accounting System.	Jan 2025		
252.242-7006	Accounting System Administration.	Jan 2025		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.244-7001	Contractor Purchasing System Administration.	Jan 2025		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7001	Warranty of Data.	Mar 2014		
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.209-4 First Article Approval-Government Testing.

(Feb 2026)

First Article Approval-Government Testing (Feb 2026)

(TBD on the individual order level)

(a) The Contractor shall deliver ____ unit(s) of Lot/Item ____ within ____ calendar days from the date of this contract to the Government at ____ [*insert name and address of the testing facility*] for first article tests. The shipping documentation shall contain this contract number and the Lot/Item identification. This contract elsewhere specifies the characteristics that the first article must meet and the testing requirements.

(b) Within ____ calendar days after the Government receives the first article, the Contracting Officer will notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval will state any further action required of the Contractor. A notice of disapproval will cite reasons for the disapproval.

(c) If the Government disapproves the first article, the Contractor, upon Government request, shall submit an additional first article for testing. After each request, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall furnish any additional first article to the Government under the terms and conditions and within the time the Government specifies. The Government will act on this first article within the time limit specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article on time, or the Contracting Officer disapproves any first article, the Contractor will have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, the Contractor-

(1) May deliver the approved first article as a part of the contract quantity, provided it meets all contract requirements for acceptance and was not consumed or destroyed in testing; and

(2) Shall remove and dispose of any first article from the Government test facility at the Contractor's expense.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer will, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates, the contract price, or both, and any other contractual term affected by the delay.

(g) The Contractor is responsible for providing operating and maintenance instructions, spare parts support, and repair of the first article during any first article test.

(h) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for (1) progress payments, or (2) termination settlements if the contract is terminated for the convenience of the Government.

(i) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the Offeror/Contractor and have been accepted by the Government. The Offeror/Contractor may request a waiver.

(End of clause)

52.216-7 Allowable Cost and Payment.

(Feb 2026)

Allowable Cost and Payment (Feb 2026)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information*. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the date of contract award through 60 months after contract award.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when-
- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either-
- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

- (a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than \$1,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order*. The Contractor is not obligated to honor-
- (1) Any order for a single item in excess of \$500M;
 - (2) Any order for a combination of items in excess of \$500M; or
 - (3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **30** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.
- (End of clause)

52.216-22 Indefinite Quantity.

(Feb 2026)

Indefinite Quantity (Feb 2026)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum." **The minimum and maximum are IAW A.2.**
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract beyond 60 months.

NOTE: In the paragraphs above, the "effective period" refers to the ordering period.

(End of clause)

52.217-6 Option for Increased Quantity. (Mar 1989)

Option for Increased Quantity (Mar 1989)

The Government may increase the quantity of supplies called for in the Schedule at the unit price specified. The Contracting Officer may exercise the option by written notice to the Contractor within 60 calendar days following the date of award of an initial delivery order by one agency "Initial Order". Delivery of the added items shall continue at the same rate as the like items called for under the contract, unless the parties otherwise agree.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-3 Hazardous Material Identification and Safety Data.

(Feb 2026)

HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026)

(a) *Hazardous material*, as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The Offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.
=====	=====
=====	=====

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(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.232-16 Progress Payments.

(Feb 2026)

PROGRESS PAYMENTS (FEB 2026)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

- (i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.
- (ii) Costs incurred by subcontractors or suppliers.
- (iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.
- (iv) Payments made or amounts payable to subcontractors or suppliers, except for-
 - (A) Completed work, including partial deliveries, to which the Contractor has acquired title; and
 - (B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) *Liquidation.* Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) *Reduction or suspension.* The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

- (1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).
- (2) Performance of this contract is endangered by the Contractor's (i) failure to make progress or (ii) unsatisfactory financial condition.
- (3) Inventory allocated to this contract substantially exceeds reasonable requirements.
- (4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.
- (5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.

(6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) *Title.*

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) *Property*, as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

- (i) Parts, materials, inventories, and work in process;
- (ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract, e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) *Risk of loss.* Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) *Control of costs and property.* The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) *Reports, forms, and access to records.*

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) *Special terms regarding default.* If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) *Reservations of rights.*

(1) No payment or vesting of title under this clause shall (i) excuse the Contractor from performance of obligations under this contract or (ii) constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause (i) shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and (ii) shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) *Financing payments to subcontractors.* The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its *Alternate I* for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) *Limitations on undefinitized contract actions.* Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A *contract action* is any action resulting in a

contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) *Due date.* The designated payment office will make progress payments on the ____ [*Contracting Officer insert date as prescribed by agency head; if not prescribed, insert "30th"*] day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.242-4 Certification of Final Indirect Costs.

(Jan 1997)

CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: ____

Signature: ____

Name of Certifying Official: ____

Title: ____

Date of Execution: ____

(End of clause)

52.243-7 Notification of Changes.

(Feb 2026)

Notification of Changes (Feb 2026)

(a) *Definitions.*

Contracting Officer, as used in this clause, does not include any representative of the Contracting Officer.

Specifically Authorized Representative (SAR), as used in this clause, means any person the Contracting Officer has designated by written notice (a copy shall be provided to the Contractor) that shall refer to this subparagraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) *Notice.* The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within **10** calendar days from the date that the Contractor identifies any Government conduct that the Contractor regards as a change to the contract terms and conditions. Examples of conduct that may be regarded as a change to terms and conditions include actions, inactions, and written or oral communications. On the basis of the most accurate information available to the Contractor, the notice shall state-

- (1) The date, nature, and circumstances of the conduct regarded as a change;
- (2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;
- (3) The identification of any documents and the substance of any oral communication involved in such conduct;
- (4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;
- (5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including-
 - (i) What line items have been or may be affected by the alleged change;
 - (ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;
 - (iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;
 - (iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and
- (6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) *Continued performance.* Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance. However, if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(d) *Government response.* The Contracting Officer shall promptly, within **10** calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-

- (1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;
- (2) Countermand any communication regarded as a change;
- (3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or
- (4) In the event the Contractor's notice information is inadequate to make a decision under (1), (2), or (3) of paragraph (d) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) *Equitable adjustments.*

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made-

- (i) In the contract price or delivery schedule or both; and
- (ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is

included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs(b) and (c) of this clause.

Note: The phrases contract price and cost wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

Subcontracts (Jun 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

TBD on the individual order level

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

TBD on the individual order level

(End of clause)

52.246-24 Limitation of Liability-High-Value Items. (Alternate I) (Tailored) (Feb 1997) Alternate I (Apr 1984)

Alternate I (Apr 1984). If the contract is for both high-value items and other end items, the contracting officer shall identify the high-value items by line item and insert the following preamble before paragraph (a):

(This clause shall apply only to those items identified in this contract as being subject to this clause.) CLINS : 0001,0002,0003

52.248-1 Value Engineering. (Jun 2020)

VALUE ENGINEERING (JUN 2020)

(a) *General*. The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions*.

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

(1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;

(2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and

(3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

(1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or

(2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation*. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) Government action.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates.* If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

(1) This contract's type (fixed-price, incentive, or cost-reimbursement);

(2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and

(3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant Contract Rate	Concurrent and Future Contract Rate	Instant Contract Rate	Concurrent and Future Contract Rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive	*50	*50	25	25

contracts)				
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	***25	***25	15	15
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

(i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;

(ii) Subtracting any Government costs or negative instant contract savings not yet offset; and

(iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

(i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.

(ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.

(j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering clause of contract _____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7010 Requirement for Contractor to Notify DoD if the Contractor's Activities are Subject to Reporting Under the U.S.-International Atomic Energy Agency Additional Protocol.

(Jan 2009)

REQUIREMENT FOR CONTRACTOR TO NOTIFY DOD IF THE CONTRACTOR'S ACTIVITIES ARE SUBJECT TO REPORTING UNDER THE U.S.-INTERNATIONAL ATOMIC ENERGY AGENCY ADDITIONAL PROTOCOL (JAN 2009)

(a) If the Contractor is required to report any of its activities in accordance with Department of Commerce regulations (15 CFR Part 781 *et seq.*) or Nuclear Regulatory Commission regulations (10 CFR Part 75) in order to implement the declarations required by the U.S.-International Atomic Energy Agency Additional Protocol (U.S.-IAEA AP), the Contractor shall-

(1) Immediately provide written notification to the following DoD Program Manager:

TBD at contract award;

(2) Include in the notification-

(i) Where DoD contract activities or information are located relative to the activities or information to be declared to the Department of Commerce or the Nuclear Regulatory Commission; and

(ii) If or when any current or former DoD contract activities and the activities to be declared to the Department of Commerce or the Nuclear Regulatory Commission have been or will be co-located or located near enough to one another to result in disclosure of the DoD activities during an IAEA inspection or visit; and

(3) Provide a copy of the notification to the Contracting Officer.

(b) After receipt of a notification submitted in accordance with paragraph (a) of this clause, the DoD Program Manager will-

(1) Conduct a security assessment to determine if and by what means access may be granted to the IAEA; or

(2) Provide written justification to the component or agency treaty office for a national security exclusion, in accordance with DoD Instruction 2060.03, Application of the National Security Exclusion to the Agreements Between the United States of America and the International Atomic Energy Agency for the Application of Safeguards in the United States of America . DoD will notify the Contractor if a national security exclusion is applied at the Contractor's location to prohibit access by the IAEA.

(c) If the DoD Program Manager determines that a security assessment is required-

(1) DoD will, at a minimum-

(i) Notify the Contractor that DoD officials intend to conduct an assessment of vulnerabilities to IAEA inspections or visits;

- (ii) Notify the Contractor of the time at which the assessment will be conducted, at least 30 days prior to the assessment;
 - (iii) Provide the Contractor with advance notice of the credentials of the DoD officials who will conduct the assessment; and
 - (iv) To the maximum extent practicable, conduct the assessment in a manner that does not impede or delay operations at the Contractor's facility; and
- (2) The Contractor shall provide access to the site and shall cooperate with DoD officials in the assessment of vulnerabilities to IAEA inspections or visits.
- (d) Following a security assessment of the Contractor's facility, DoD officials will notify the Contractor as to-
 - (1) Whether the Contractor's facility has any vulnerabilities where potentially declarable activities under the U.S.-IAEA AP are taking place;
 - (2) Whether additional security measures are needed; and
 - (3) Whether DoD will apply a national security exclusion.
 - (e) If DoD applies a national security exclusion, the Contractor shall not grant access to IAEA inspectors.
 - (f) If DoD does not apply a national security exclusion, the Contractor shall apply managed access to prevent disclosure of program activities, locations, or information in the U.S. declaration.
 - (g) The Contractor shall not delay submission of any reports required by the Department of Commerce or the Nuclear Regulatory Commission while awaiting a DoD response to a notification provided in accordance with this clause.
 - (h) The Contractor shall incorporate the substance of this clause, including this paragraph (h), in all subcontracts that are subject to the provisions of the U.S.-IAEA AP.

(End of clause)

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description (TBD on DO Level)

=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description (TBD on DO Level)
--------------------------	------------------------------------

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed repairables and DoD serially managed nonrepairables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- part.
- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
 - (2) Unique item identifier of the embedded subassembly, component, or part.
 - (3) Unique item identifier type.**
 - (4) Issuing agency code (if concatenated unique item identifier is used).**
 - (5) Enterprise identifier (if concatenated unique item identifier is used).**
 - (6) Original part number (if there is serialization within the original part number).**
 - (7) Lot or batch number (if there is serialization within the lot or batch number).**
 - (8) Current part number (optional and only if not the same as the original part number).**
 - (9) Current part number effective date (optional and only if current part number is used).**
 - (10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts.* If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from _____ (*Contracting Officer to insert applicable information cited in PGI 225.372-1 (DFARS/PGI view)*).

(End of clause)

252.227-7989 Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (DEVIATION 2026-O0036) (Feb 2026) Deviation 2026-O0036 (Feb 2026)

RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, AND COMPUTER SOFTWARE DOCUMENTATION--OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

- (1) Has been sold, leased, or licensed to the public;
- (2) Has been offered for sale, lease, or license to the public;
- (3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or
- (4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

- (1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

- (2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

- (1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

- (2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

- (3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

- (4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

- (1) Private expense determinations should be made at the lowest practicable level.

- (2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability.* (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software.* The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights.* The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights.* (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights.* (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;

(B) The Government will notify the contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights.* (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;

(B) The Government will notify the Contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights.* The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights.* Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability.* The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software.* The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software.* The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure.* (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--			
Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
(LIST)	(LIST)	(LIST)	(LIST)
==	==	==	==
¹ If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.			
² Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.			
³ Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).			

⁴ Corporation, individual, or other person, as appropriate.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements.* The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions.* The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings.* (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings.* Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____

Expiration Date _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings.* Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) *Restricted rights markings.* Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number [Insert contract number] _____, License Number [Insert license identifier] _____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings.* If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records.* Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings--(1) Unjustified technical data markings.* The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings.* A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation.* (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers.* (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (1)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

252.232-7007 Limitation of Government's Obligation.

(Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) (**Completed on the individual order level**) is/are incrementally funded. For this/these item(s), the sum of (**Completed on the individual order level**) of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____

(End of clause)

252.239-7016 Telecommunications Security Equipment, Devices, Techniques, and Services.

(Dec 1991)

TELECOMMUNICATIONS SECURITY EQUIPMENT, DEVICES, TECHNIQUES, AND SERVICES (DEC 1991)

(a) *Definitions.* As used in this clause-

(1) "Securing" means the application of Government-approved telecommunications security equipment, devices, techniques, or services to contractor telecommunications systems.

(2) "Sensitive information" means any information the loss, misuse, or modification of which, or unauthorized access to, could adversely affect the national interest or the conduct of Federal programs, or the privacy to which individuals are entitled under 5 U.S.C. 552a (the Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or Act of Congress to be kept secret in the interest of national defense or foreign policy.

(3) "Telecommunications systems" means voice, record, and data communications, including management information systems and local data networks that connect to external transmission media, when employed by Government agencies, contractors, and subcontractors to transmit-

(i) Classified or sensitive information;

(ii) Matters involving intelligence activities, cryptologic activities related to national security, the command and control of military forces, or equipment that is an integral part of a weapon or weapons system; or

(iii) Matters critical to the direct fulfillment of military or intelligence missions.

(b) This solicitation/contract identifies classified or sensitive information that requires securing during telecommunications and requires the Contractor to secure telecommunications systems. The Contractor agrees to secure information and systems at the following location: ____ (Identify the location.)

(c) To provide the security, the Contractor shall use Government-approved telecommunications equipment, devices, techniques, or services. A list of the approved equipment, etc. may be obtained from (identify where list can be obtained). Equipment, devices, techniques, or services used by the Contractor must be compatible or interoperable with (list and identify the location of any telecommunications security equipment, device, technique, or service currently being used by the technical or requirements organization or other offices with which the Contractor must communicate).

(d) Except as may be provided elsewhere in this contract, the Contractor shall furnish all telecommunications security equipment, devices, techniques, or services necessary to perform this contract. The Contractor must meet ownership eligibility conditions for communications security equipment designated as controlled cryptographic items.

(e) The Contractor agrees to include this clause, including this paragraph (e), in all subcontracts which require securing telecommunications.

(End of clause)

Section J - List of Attachments

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LIST OF EXHIBITS

DOCUMENT TYPE	DESCRIPTION	Approved by date:	Revision (Date/Modification No.)
Exhibit A	Contract Data Requirements List (CDRL)	11 Mar 2026	
Exhibit B	Contract Data Requirements List (CDRL)	11 Mar 2026	
Exhibit C	Contract Data Requirements List (CDRL)	11 Mar 2026	
Exhibit D	Contract Data Requirements List (CDRL)	11 Mar 2026	
Exhibit E	Contract Data Requirements List (CDRL)	11 Mar 2026	
Exhibit F	Contract Data Requirements List (CDRL)	11 Mar 2026	

LIST OF ATTACHMENTS

Attachment	DESCRIPTION	Approved by date:	Revision (Date/Modification No.)
1	TCTS Inc II IDIQ Performance Work Statement (PWS)	1 Apr 2026	

2	TCTS Inc II System Performance Specification (SPS)	20 Mar 2026	
3	Dual Pod Shipping Container Inspection Procedures	21 July 2025	
4	DD254	April 2018	
5	NAVAIR Form 5720/1 Public Release Authorization Request Form	August 2017	
6	Tempest Requirements Questionnaire	March 2026	
7	TCTS II System Engineering Plan		
8	TCTS II-P6 Acceptance Criteria	March 2026	
9	Configuration Management Plan	May 2023	
10	TCTS II USN Site Survey Locations	March 2026	
11	TDP Option Selection Worksheet	March 2026	
12	Data Item Transmittal/Acceptance/ Rejection Form	January 2023	
13	ICDs		
14	MLU/DRD Drawing 4062AS3550	December 2022	
15	TCTS II SVD v2.0.2 RevT		
16	Small Business Subcontracting Plan (Offeror fill-in at contract award)	(Offeror fill-in)	
17	TCTS II Sections L&M (To be changed to "RESERVED" at contract award)	N/A	
18	Section B Pricing Tables	(Offeror fill-in)	
19	TMCR_TCTS Inc II	01 Oct 2019	

20	20-099 PMA205 TCTS II Inc PPP_MS C_Final	17 Mar 2021	
21	TCTS Inc II System Performance Specification (SPS) Classified Annex	To be provided at contract award	
22	P5 and P6 CTS Container Drawing #202507220	19 Mar 2026	
23	GFE/GFI/GFP List	8 April 2026	

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.219-7000	Advancing Small Business Growth.	Jun 2023		
252.225-7031	Secondary Arab Boycott of Israel .	Jun 2005		
252.225-7050	Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism.	Dec 2022		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government.	Jun 1995		

FAR Clauses Incorporated by Full Text

52.203-2 Certificate of Independent Price Determination. (Apr 1985)

CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.204-5 Women-Owned Business (Other Than Small Business). (Oct 2014)

WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS) (OCT 2014)

(a) *Definition.* "Women-owned business concern," as used in this provision, means a concern that is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

(b) *Representation.* [Complete only if the offeror is a women-owned business concern and has not represented itself as a small business concern in paragraph (c)(1) of FAR 52.219-1, Small Business Program Representations, of this solicitation.] The offeror represents that it ☐ is a women-owned business concern.

(End of provision)

52.204-8 Annual Representations and Certifications. (Oct 2025)

Annual Representations and Certifications (Oct 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is **336413**.

(2) The small business size standard is **1,250**.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

- (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
- (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$200,000.
- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.
- (xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.
- (xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.
- (xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.
- (xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change
=====			

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-2 Prohibition on Contracting With Inverted Domestic Corporations-Representation. (Feb 2026)

PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (FEB 2026)

(a) *Definitions.* As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation*. The Offeror represents that-

(1) It ☐ is, ☐ is not an inverted domestic corporation; and

(2) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-5 Certification Regarding Responsibility Matters.

(Feb 2026)

CERTIFICATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters.

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(Feb 2026)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification.

(Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms

control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations. (Alternate I)

(Feb 2024) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

52.225-18 Place of Manufacture.

(Aug 2018)

PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) FPSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

- (1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ Outside the United States.

(End of provision)

52.230-1 Cost Accounting Standards Notices and Certification.

(Feb 2026)

COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (FEB 2026)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes	☐ No
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(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2025) Alternate A (Oct 2025)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.209-7002 Disclosure of Ownership or Control by a Foreign Government. (Dec 2022)

DISCLOSURE OF OWNERSHIP OR CONTROL BY A FOREIGN GOVERNMENT

(DEC 2022)

(a) *Definitions.* As used in this provision-

(1) "Effectively owned or controlled" means that a foreign government or any entity controlled by a foreign government has the power, either directly or indirectly, whether exercised or exercisable, to control the election, appointment, or tenure of the Offeror's officers or a majority of the Offeror's board of directors by any means, e.g., ownership, contract, or operation of law (or equivalent power for unincorporated organizations).

(2) "Entity controlled by a foreign government"-

(i) Means-

(A) Any domestic or foreign organization or corporation that is effectively owned or controlled by a foreign government; or

(B) Any individual acting on behalf of a foreign government.

(ii) Does not include an organization or corporation that is owned, but is not controlled, either directly or indirectly, by a foreign government if the ownership of that organization or corporation by that foreign government was effective before October 23, 1992.

(3) "Foreign government" includes the state and the government of any country (other than the United States and its outlying areas) as well as any political subdivision, agency, or instrumentality thereof.

(4) "Proscribed information" means-

(i) Top Secret information;

(ii) Communications security (COMSEC) material, excluding controlled cryptographic items when unkeyed or utilized with unclassified keys;

(iii) Restricted Data as defined in the U.S. Atomic Energy Act of 1954, as amended;

(iv) Special Access Program (SAP) information; or

(v) Sensitive Compartmented Information (SCI).

(b) *Prohibition on award.* No contract under a national security program may be awarded to an entity controlled by a foreign government if that entity requires access to proscribed information to perform the contract, unless the Secretary of Defense or a designee has waived application of 10 U.S.C. 4874.

(c) *Disclosure.* The Offeror shall disclose any interest a foreign government has in the Offeror when that interest constitutes control by a foreign government as defined in this provision. If the Offeror is a subsidiary, it shall also disclose any reportable interest a foreign government has in any entity that owns or controls the subsidiary, including reportable interest concerning the Offeror's immediate parent, intermediate parents, and the ultimate parent. Use separate paper as needed, and provide the information in the following format:

Offeror's Point of Contact for Questions about Disclosure (Name and Phone Number with Country Code, City Code and Area Code, as applicable)	
==	
Name and Address of Offeror	
==	
Name and Address of Entity Controlled by a Foreign Government	Description of Interest, Ownership Percentage, and Identification of Foreign Government
==	==
(End of provision)	

252.225-7000 Buy American--Balance of Payments Program Certificate. (Alternate I) (Feb 2024) Alternate I (Feb 2024)

Alternate I. As prescribed in 225.1101(1) and (1)(ii), use the following provision, which adds "South Caucasus/Central and South Asian (SC/CASA) state" and "South Caucasus/Central and South Asian (SC/CASA) state end product" in paragraph (a), and replaces "qualifying country end products" in paragraphs (b)(2) and (c)(2) with "qualifying country end products or SC/CASA state end products":

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-ALTERNATE I (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," "South Caucasus/Central and South Asian (SC/CASA) state," "South Caucasus/Central and South Asian (SC/CASA) state end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Alternate I clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products or SC/CASA state end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Alternate I clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products or SC/CASA state end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

252.225-7020 Trade Agreements Certificate.

(Nov 2014)

TRADE AGREEMENTS CERTIFICATE-BASIC (NOV 2014)

(a) *Definitions.* "Designated country end product," "nondesignated country end product," "qualifying country end product," and "U.S.-made end product" as used in this provision have the meanings given in the Trade Agreements-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will consider only offers of end products that are U.S.-made, qualifying country, or designated country end products unless-

- (i) There are no offers of such end products;
- (ii) The offers of such end products are insufficient to fulfill the Government's requirements; or
- (iii) A national interest waiver has been granted.

(c) *Certification and identification of country of origin.*

(1) For all line items subject to the Trade Agreements-Basic clause of this solicitation, the offeror certifies that each end product to be delivered under this contract, except those listed in paragraph (c)(2) of this provision, is a U.S.-made, qualifying country, or designated country end product.

(2) The following supplies are other nondesignated country end products:

<u>(Line Item Number)</u>		<u>(Country of Origin)</u>
==		==
==		==
==		==

(End of provision)

252.225-7035 Buy American--Free Trade Agreements--Balance of Payments Program Certificate. (Feb 2024)

BUY AMERICAN-FREE TRADE AGREEMENTS-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Bahraini end product," "commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "foreign end product," "Moroccan end product," "Panamanian end product," "Peruvian end product," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7036, Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) For line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, will evaluate offers of qualifying country end products or Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products without regard to the restrictions of the Buy American or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American-Free Trade Agreements-Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

- (i) Each end product, except the end products listed in paragraph (c)(2) of this provision, is a domestic end product;
- (ii) Each domestic end product listed in paragraph (c)(3) of this provision contains a critical component or a critical item; and
- (iii) Components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country.

(2) The Offeror shall identify all end products that are not domestic end products.

(i) The Offeror certifies that the following supplies are qualifying country (except Australian) end products:

==(Line Item Number) ==(Country of Origin)

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products:

____(Line Item Number) ____ (Country of Origin)

(iii) The following supplies are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
____	____	____
____	____	____
____	____	____

(3) The Offeror shall list the line item numbers of domestic end products that contain a critical component or a critical item (see section 25.105 of the Federal Acquisition Regulation).

Line Item Number: ____ [List as necessary] ____

(End of provision)

252.227-7992 Identification and Assertion of Use, Release, or Disclosure Restrictions. (Feb 2026) Deviation 2026-O0036 (Feb 2026)
(DEVIATION 2026-O0036)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this provision--

"Computer software" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software the Contractor must deliver with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer Program (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

--

Identification and Assertion of Restrictions on the Government’s Use, Release, or Disclosure of Technical Data or Computer Software

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical data or computer software to be delivered with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
(LIST) ⁵	(LIST)	(LIST)	(LIST)
==	==	==	==

¹ For technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data relate. The Government’s rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter “none” when all data or software will be submitted without restrictions.

Date ____

Printed Name and Title ____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

KTXT.209-9511 CONFLICT OF INTEREST REPRESENTATION (NAVAIR)

(Feb 2025)

(a) This solicitation contains conflict of interest disclosure requirements to maintain the integrity of the source selection.

(1) Subparts 9.5 and 3.1 of the Federal Acquisition Regulation (FAR) prohibit organizational and personal conflicts of interest in Government procurements and establish the following principle: "Government business shall be conducted in a manner above reproach. . . . The general rule is to avoid strictly any conflict of interest or even the appearance of a conflict of interest in Government contractor relationships." FAR 3.101-1.

(2) Actual or potential conflicts of interest may arise, among other circumstances, when an Offeror has or may have unequal access to nonpublic information relevant to the solicitation or when a current or former Government employee may be negotiating for employment or be employed by an Offeror or any of an Offeror's subcontractors, partners, or affiliates. Unequal access may occur through communications (e.g., verbal, written, or electronic means) with current or former Government employees or through current or previous contracts that the Offeror or its subcontractors, partners, or affiliates have or had with the Government.

(b) Conflicts of Interest Prior to the Receipt of Proposals. Prior to and commensurate with the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the Offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall check the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text. Otherwise, the Offeror must affirmatively represent that no such actual or potential conflicts of interest are known or should have been known commensurate with the due date for receipt of proposals.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed; or

☐ There are no actual or potential conflicts of interest to disclose.

(c) Conflicts of Interest After the Receipt of Proposals. After the due date for receipt of proposals, the offeror shall comply as follows. Consistent with FAR Subparts 9.5 and 3.1 and as applicable to this solicitation, if the offeror identifies for itself (or any of its subcontractors, partners, or affiliates); or has information that any other Offeror/potential Offeror has or may have an actual or potential conflict of interest, the Offeror shall within 3 business days of conflict identification provide the Contracting Officer an updated representation by checking the appropriate box(es) below and shall include the supplemental information required per paragraph (d) of this text.

☐ Actual or potential conflicts of interest for the Offeror are being disclosed; and/or

☐ Actual or potential conflicts of interest for another Offeror/potential Offeror are being disclosed

(d) If the Offeror represents that there are actual or potential conflicts of interest pursuant to either paragraph (b) or paragraph (c), see LTXT-209-9512 for additional requirements.

(e) The Offeror's compliance with the representation requirements of paragraphs (b) and (c) will be reviewed as part of the Contracting Officer's responsibility determination and will not be considered as part of the evaluation conducted per Section M. If the Contracting Officer determines that the Offeror has not complied with the above representation requirements, then the Offeror may be found to be not responsible and therefore ineligible for award in accordance with the best interests of the Government.

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Please refer to attachment 17 for additional Section L instructions.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration.	Feb 2026		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.233-2	Service of Protest. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.215-7994	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.215-7996	Notification to Offerors-Postaward Debriefings. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		
252.232-7016	Notice of Progress Payments or Performance-Based Payments.	Apr 2020		

FAR Clauses Incorporated by Full Text

52.207-4 Economic Purchase Quantity-Supplies. (Aug 1987)

ECONOMIC PURCHASE QUANTITY-SUPPLIES (AUG 1987)

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

Offeror Recommendations			
Item	Quantity	Price Quotation	Total
_____	_____	_____	_____

==	==	==	==
==	==	==	==
==	==	==	==

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.

(End of provision)

52.216-1 Type of Contract.

(Feb 2026)

Type of Contract (Feb 2026)

The Government contemplates award of an ID/IQ contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns.

(Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.
- (b) The use in this solicitation of any Defense Federal Acquisition Regulation (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

- (a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.
- (b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.
- (2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-
- (i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and
- (ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.
- (c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.
- (d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

- (a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-
- (1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and
- (2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation*. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable _____. (The Offeror shall provide data other than certified cost or pricing data to include, at a minimum: a summary of recent sales of the same or similar items (including customer type, sales dates, quantities, and prices), and a detailed justification for any price differences between those historical sales and the current proposed price.)

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7010 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate I) (May 2024) Alternate I (Aug 2024)

Alternate I. As prescribed in 215.408(5)(i) and (5)(i)(B), use the following provision, which includes different paragraphs (c)(1) and (d)(3) than the basic clause.

**REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-
ALTERNATE I (AUG 2024)**

(a) *Definitions*. As used in this provision-

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data*.

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered*. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception*. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include-

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial-

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including-

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall-

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog-

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall prepare and submit certified cost or pricing data and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in any resultant contract, unless the Contracting Officer and the Offeror agree to a different format and change this provision to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror _____[Offeror insert company name] certifies that the customer was _____[Offeror insert one or more of the following as applicable: a government customer (e.g., Federal, state, local, or foreign government); a commercial customer purchasing the same or similar product for governmental purposes; or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]."

(4) The Offeror shall provide information described as follows: *[Insert description of the data and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e)].*

(5) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(6) *Subcontract price evaluation.*

(i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary-

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts.* The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of-

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7993 Proposal Adequacy Checklist. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

PROPOSAL ADEQUACY CHECKLIST (DEVIATION 2026-O0048) (MAR 2026)

The offeror shall complete the following checklist, providing location of requested information, or an explanation of why the requested information is not provided. In preparation of the offeror's checklist, offerors may elect to have their prospective subcontractors use the same or similar checklist as appropriate.

PROPOSAL ADEQUACY CHECKLIST

<u>REFERENCES</u>	<u>SUBMISSIONITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
<u>GENERAL INSTRUCTIONS</u>			
1. FAR 15.408-2, Table 15-1, Section I Paragraph A	Is there a properly completed first page of the proposal per FAR 15.408-2 Table 15-1 I.A or as specified in the solicitation?	==	==

2. FAR 15.408-2, Table 15-1, Section I Paragraph A(7)	Does the proposal identify the need for Government-furnished material /tooling/test equipment? Include the accountable contract number and contracting officer contact information if known.	==	==
3. FAR 15.408-2, Table 15-1, Section I Paragraph A(8)	Does the proposal identify and explain notifications of noncompliance with Cost Accounting Standards Board or Cost Accounting Standards (CAS); any proposal inconsistencies with your disclosed practices or applicable CAS; and inconsistencies with your established estimating and accounting principles and procedures?	==	==
4. FAR 15.408-2, Table 15-1, Section I, Paragraph C(1) FAR 2.101, "Cost or pricing data"	Does the proposal disclose any other known activity that could materially impact the costs? This may include, but is not limited to, such factors as-- (1) Vendor quotations; (2) Nonrecurring costs; (3) Information on changes in production methods and in production or purchasing volume; (4) Data supporting projections of business prospects and objectives and related operations costs; (5) Unit-cost trends such as those associated with labor efficiency; (6) Make-or-buy decisions; (7) Estimated resources to attain business goals; and (8) Information on management decisions that could have a significant bearing on costs.	==	==
5. FAR 15.408-2, Table 15-1, Section I Paragraph B	Is an Index of all certified cost or pricing data and information accompanying or identified in the proposal provided and appropriately referenced?	==	==
6. FAR 15.403-2(b)	Are there any exceptions to submission of certified cost or pricing data pursuant to FAR 15.403-2(b)? If so, is supporting documentation included in the proposal? (Note questions 18-20.)	==	==
7. FAR 15.408-2, Table 15-1, Section I Paragraph C(2) (i)	Does the proposal disclose the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data?	==	==

8. FAR 15.408-2, Table 15-1, Section I Paragraph C(2) (ii)	Does the proposal disclose the nature and amount of any contingencies included in the proposed price?	==	==
9. FAR 15.408-2, Table 15-1, Section II, Paragraph A or B	Does the proposal explain the basis of all cost estimating relationships (labor hours or material) proposed on other than a discrete basis?	==	==
10. FAR 15.408-2, Table 15-1, Section I Paragraphs D and E	Is there a summary of total cost by element of cost and are the elements of cost cross-referenced to the supporting cost or pricing data? (Breakdowns for each cost element must be consistent with your cost accounting system, including breakdown by year.)	==	==
11. FAR 15.408-2, Table 15-1, Section I Paragraphs D and E	If more than one Contract Line Item Number (CLIN) or sub Contract Line Item Number (sub-CLIN) is proposed as required by the RFP, are there summary total amounts covering all line items for each element of cost and is it cross-referenced to the supporting cost or pricing data?	==	==
12. FAR 15.408-2, Table 15-1, Section I Paragraph F	Does the proposal identify any incurred costs for work performed before the submission of the proposal?	==	==
13. FAR 15.408-2, Table 15-1, Section I Paragraph G	Is there a Government forward pricing rate agreement (FPRA)? If so, the offeror shall identify the official submittal of such rate and factor data. If not, does the proposal include all rates and factors by year that are utilized in the development of the proposal and the basis for those rates and factors?	==	==
<u>COST ELEMENTS</u>			
MATERIALS AND SERVICES			

14. FAR 15.408-2, Table 15-1, Section II Paragraph A	Does the proposal include a consolidated summary of individual material and services, frequently referred to as a Consolidated Bill of Material (CBOM), to include the basis for pricing? The offeror's consolidated summary shall include raw materials, parts, components, assemblies, subcontracts and services to be produced or performed by others, identifying as a minimum the item, source, quantity, and price.	==	==
SUBCONTRACTS (Purchased materials or services)			
15. DFARS 215.404-8	Has the offeror identified in the proposal those subcontractor proposals, for which the contracting officer has initiated or may need to request field pricing analysis?	==	==
16. FAR 15.404-8(b) FAR 52.244-2	Per the thresholds of FAR 15.404-8(b), Subcontract Pricing Considerations, does the proposal include a copy of the applicable subcontractor's certified cost or pricing data?	==	==
17. FAR 15.408-2, Table 15-1, Note 1; Section II Paragraph A	Is there a price/cost analysis establishing the reasonableness of each of the proposed subcontracts included with the proposal? If the offeror's price/cost analyses are not provided with the proposal, does the proposal include a matrix identifying dates for receipt of subcontractor proposal, completion of fact finding for purposes of price/cost analysis, and submission of the price/cost analysis?	==	==
<u>EXCEPTIONS TO CERTIFIED COST OR PRICING DATA</u>			
18. FAR 52.215-20, FAR 2.101, "commercial product" or "commercial service"	Has the offeror submitted an exception to the submission of certified cost or pricing data for commercial products or commercial services proposed either at the prime or subcontractor level, in accordance with provision 52.215-20? a. Has the offeror specifically identified the type of commercial product or commercial service claim (FAR 2.101 "commercial product" or "commercial service" definition), and the basis on which the commercial product or commercial service meets the definition? b. For modified commercial products (FAR 2.101 "commercial product" definition); did the offeror classify the modification(s) as either-- i. A modification of a type customarily available in the commercial marketplace (paragraph (3)(i)); or	==	==

	ii. A minor modification (paragraph (3)(ii)) of a type not customarily available in the commercial marketplace made to meet Federal Government requirements not exceeding the thresholds in FAR 15.403-2(c)(3)(iii)(B)? c. For proposed commercial products "of a type", or "evolved" or modified (FAR 2.101 "commercial product" definition), did the contractor provide a technical description of the differences between the proposed item and the comparison item(s)?		
19.	[Reserved]		
20. FAR 15.408-2, Table 15-1, Section II Paragraph A(1)	Does the proposal support the degree of competition and the basis for establishing the source and reasonableness of price for each subcontract or purchase order priced on a competitive basis exceeding the threshold for certified cost or pricing data?	==	==
INTERORGANIZATIONAL TRANSFERS			
21. FAR 15.408-2, Table 15-1, Section II Paragraph A. (2)	For inter-organizational transfers proposed at cost, does the proposal include a complete cost proposal in compliance with Table 15-1?	==	==
22. FAR 15.408-2, Table 15-1, Section II Paragraph A(1)	For inter-organizational transfers proposed at price in accordance with FAR 31.205-26(e), does the proposal provide an analysis by the prime that supports the exception from certified cost or pricing data in accordance with FAR15.403-2?	==	==
DIRECT LABOR			
23. FAR 15.408-2, Table 15-1, Section II Paragraph B	Does the proposal include a time phased (i.e.; monthly, quarterly) breakdown of labor hours, rates and costs by category or skill level? If labor is the allocation base for indirect costs, the labor cost must be summarized in order that the applicable overhead rate can be applied.	==	==
		==	==

24. FAR 15.408-2, Table 15-1, Section II Paragraph B	For labor Basis of Estimates (BOEs), does the proposal include labor categories, labor hours, and task descriptions, (e.g.; Statement of Work reference, applicable CLIN, Work Breakdown Structure, rationale for estimate, applicable history, and time-phasing)?		
25. FAR subpart 22.10	If covered by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), are the rates in the proposal in compliance with the minimum rates specified in the statute?	==	==
<u>INDIRECT COSTS</u>			
26. FAR 15.408-2, Table 15-1, Section II Paragraph C	Does the proposal indicate the basis of estimate for proposed indirect costs and how they are applied? (Support for the indirect rates could consist of cost breakdowns, trends, and budgetary data.)	==	==
<u>OTHER COSTS</u>			
27. FAR 15.408-2, Table 15-1, Section II Paragraph D	Does the proposal include other direct costs and the basis for pricing? If travel is included does the proposal include number of trips, number of people, number of days per trip, locations, and rates (e.g. airfare, per diem, hotel, car rental, etc)?	==	==
28. FAR 15.408-2, Table 15-1, Section II Paragraph E	If royalties exceed \$1,500 does the proposal provide the information/data identified by Table 15-1?	==	==
29. FAR 15.408-2, Table 15-1, Section II Paragraph F	When facilities capital cost of money is proposed, does the proposal include submission of Form CASB-CMF or reference to an FPRA/FPRP and show the calculation of the proposed amount?	==	==
<u>FORMATS FOR SUBMISSION OF LINE ITEM SUMMARIES</u>			

30. FAR 15.408-2, Table 15-1, Section III	Are all cost element breakdowns provided using the applicable format prescribed in FAR 15.408-2, Table 15-1 III? (or alternative format if specified in the request for proposal)	==	==
31. FAR 15.408-2, Table 15-1, Section III Paragraph B	If the proposal is for a modification or change order, have cost of work deleted (credits) and cost of work added (debits) been provided in the format described in FAR 15.408-2, Table 15-1.III.B?	==	==
32. FAR 15.408-2, Table 15-1, Section III Paragraph C	For price revisions/redeterminations, does the proposal follow the format in FAR 15.408-2, Table 15-1.III.C?	==	==
<u>OTHER</u>			
33. FAR 16.4	If an incentive contract type, does the proposal include offeror proposed target cost, target profit or fee, share ratio, and, when applicable, minimum /maximum fee, ceiling price?	==	==
34. FAR 16.203-4 and FAR 15.408-2, Table 15-1, Section II, Paragraphs A, B, C, and D	If Economic Price Adjustments are being proposed, does the proposal show the rationale and application for the economic price adjustment?	==	==
35. FAR 52.232-28	If the offeror is proposing Performance-Based Payments did the offeror comply with FAR 52.232-28?	==	==
36. FAR 15.110(v) FAR 52.215-22 FAR 52.215-23	Excessive Pass-through Charges- Identification of Subcontract Effort: If the offeror intends to subcontract more than 70% of the total cost of work to be performed, does the proposal identify: (i) the amount of the offeror's indirect costs and profit applicable to the work to be performed by the proposed subcontractor(s); and (ii) a description of the added value provided by the offeror as related to the work to be performed by the proposed subcontractor(s)?	==	==

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(End of provision)

Section M - Evaluation Factors for Award

Please refer to attachment 17 for additional section M evaluation factors.

Section L – Instructions, Conditions and Notices to Bidders

LTXT.209-9512 CONFLICT OF INTEREST REQUIREMENTS (NAVAIR) (FEB 2025)

(a) Any time the Offeror represents that there is an actual or potential conflict of interest per KTXT.209-9511 either for itself (or any of its subcontractors, partners, or affiliates) or other Offerors or potential Offerors, the Offeror shall submit information detailing the actual or potential conflict. There is no page limitation on this information.

(b) Any time the Offeror represents that there is an actual or potential conflict of interest for itself (or any of its subcontractors, partners, or affiliates) per KTXT.209-9511, Conflict of Interest Representation, the Offeror shall also submit a mitigation plan. The mitigation plan shall, at a minimum, identify the conflicted party/parties, provide salient facts, provide an analysis of the actual or potential conflict of interest, and recommend an approach to neutralize, mitigate, or avoid the actual or potential conflict. There is no page limitation on the conflict of interest mitigation plan.

(c) The actual or potential conflict of interest and the Offeror's proposed mitigation plan, if applicable, will be reviewed as part of the Contracting Officer's responsibility determination and will not be considered as part of the evaluation conducted per Section M. If the Contracting Officer determines that the conflict of interest cannot be neutralized, mitigated, or avoided such that the integrity of the procurement is maintained, then the conflicted Offeror may be deemed ineligible for award.

(d) The Offeror's mitigation plan may be submitted at any time prior to the due date for receipt of proposals and, if not provided in advance, shall be submitted no later than the due date for receipt of proposals. If the Offeror provides an updated KTXT.209-9511 representation after the due date for receipt of proposals, the Offeror's mitigation plan shall be submitted concurrently with the submission of the updated representation.

FAR 52.215-1 Alt 1 is included as a Section L Clause.

PART A GENERAL INSTRUCTIONS

1. GENERAL

The Offeror's proposal must be sufficient in detail and scope to provide the Government with a clear understanding of the Offeror's approach, expertise, and capabilities as required by the solicitation. The Offeror's proposal must demonstrate the Offeror's understanding of the solicitation requirements and its associated risks with its proposed approach. The Offeror shall not alter or rearrange the solicitation. The burden of proof for all substantiation within the proposal rests with the Offeror. Alternate proposals are not acceptable.

The Offeror shall include the data necessary to illustrate the adequacy of its various assumptions, approaches, and solutions to problems. The Offeror shall include detailed information in the most logical place and summarize or reference the information in other areas if an overlap exists. Do not provide elaborate brochures or other presentation material beyond that sufficient to present a complete and effective proposal.

Throughout these instructions, the "Offeror" is the Prime Contractor with its Commercial and Government Entity (CAGE) code identified in Block 15A on Standard Form (SF)-33, Solicitation, Offer, and Award. For purposes of this evaluation, the Prime Contractor is the Principal Entity.

2. PROPOSAL FORMATING

2.1 Electronic Formatting and Applications

This section provides information to the Offeror on the electronic format and the appropriate software for drafting and submitting proposals.

Using the software and procedures described in this section will ensure that the Offeror's proposal is suitable for reading electronically. The Offeror shall format proposals as follows:

A page is defined as one side of a sheet, 8 1/2" × 11", with at least one inch margins on all sides, using a Times New Roman 12-point regular font with the following Advanced options (100% Scale, Normal Spacing, Normal Position, No Ligatures and default OpenType Features). In addition, Line and Paragraph spacing shall be no less than 0 point before and after with single line spacing. The Offeror may use 10-point font for Tables and Graphics. The following are excluded from the page count: Title pages, table of contents, pages marked as intentionally left blank, Table T-1 (Technical CRM), Table T-2 (Relevant Contract Summary) and acronym lists. Volume 3 (Cost/Price) and Volume 4 (Small Business) are not page limited. However, this section is to be strictly limited to cost/price information. Information that can be construed as belonging in one of the other sections of the proposal will be so construed and counted against that section's page limitation. In the event of negotiations, separate page limitations will be specified in the Government's request for additional information. Likewise, if final proposal revisions are requested, separate page limitations will be specified in the Government's request for that submission. Pages submitted in excess of the limitations specified in Table G-1 will not be evaluated by the Government. All proposal pages shall include a volume number and page number. In addition to any marking that the Offeror chooses to include in the proposal in accordance with FAR 52.215-1(e), the Offeror shall also mark all proposal information as Controlled Unclassified Information/ Source Selection using "CUI//SSEL" and "Source Selection Information-See FAR 2.101 and 3.104" to comply with FAR 3.104-4. Offerors shall include any additional CUI markings, as applicable.

Table G-1 identifies the proposal structure, file naming conventions and page counts for each volume.

2.2 Operating System and Applications

The Government uses Microsoft Windows 11 Enterprise Operating System and the Microsoft Office 365 suite to access proposals. Offerors shall submit proposal information either using Office 365 or otherwise compatible applications. Offerors shall provide letters and other signed documents as fully searchable Portable Document Format (.pdf) files. Unless expressly authorized, the use of other application software for submission of proposals is unacceptable. Failure to comply with the instructions in this paragraph may render the Offeror's proposal unawardable.

2.3 Hyperlinks

Offerors shall not include hyperlinks unless expressly authorized within its proposal.

2.4 Virus Free Electronic Submission

Offerors shall ensure that its electronic proposal is virus free. The Government will disqualify any Offeror who submits documents that contain a virus or malicious code from the competition.

2.5 Multimedia

The Offeror shall not embed sound or video (e.g., MPEG) files within its proposal submission.

2.6 Graphics

To avoid the need for extensive computer system resources to view graphics, Offerors shall:

- a. Simplify the color palette when creating figures and minimize the use of color print or graphics to the maximum extent possible;
- b. Minimize size of graphics files; and
- c. Avoid scanned images.

3. PROPOSAL CONTENT AND VOLUMES

The Offeror shall present its proposal information in a manner that facilitates a one for one comparison between the information presented in the proposal volume and the Section L proposal instructions. The Offeror shall structure proposal information such that its paragraph numbers/letters correspond to the proposal instructions paragraph numbers/letters, although the Offeror may add lower tier sub paragraphs.

Price information, (e.g., dollar values and/or hourly rates) shall appear only in Volume 1 (Contract Administration), Volume 4 (Price), Volume 5 (Small Business), and Annex D (Small Business Subcontracting Plan).

The Offeror shall follow the basic structure of the file naming convention in Table G-1 for electronic file submissions (e.g.,

proposal volumes, attachments, appendices), where “#” represents the sequential numbering of files and shall preface files with an abbreviated company name. Offerors shall keep the file name as short as possible (i.e., under 40 characters) to ensure file accessibility on Government SharePoint systems or shared drives. Files with longer names often become corrupt or inaccessible.

The Offeror shall organize its submission using one folder for each proposal volume or annex, and include the electronic files requested for that specific volume or annex. Offerors should submit each volume or annex as one file, if possible. Offerors shall not submit each proposal section/paragraph using separate files. Information submitted as an Annex to a particular proposal volume may include manuals, specifications, plans, procedures, and company policies, as well as other information requested in “Part B Specific Instructions” and do not count towards the suggested page count.

Table G-1 Offeror File Naming and Proposal Structure

Volume Number	Proposal Volume Title	File naming convention	Suggested Pages
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CUI – SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

PREREQ	Prerequisite	[Company Preface]Vol PreReq.pdf	4
1	Contract Administration	[Company Preface]Vol 1 KA#.pdf	5
	Model Contract	[Company Preface] Vol 1 Model_Contract.docx or .pdf	As Needed
	Attachment L-1 Volume 1 KA Tables Table KA-1 Offeror Summary Table KA-2 Offeror Information Table KA-3 Business System Status Table KA-4 Terms and Conditions	[Company Preface]Vol 1 KA Tables.xlsx	As Needed
2	Technical	[Company Preface]Vol 2 Tech#.pdf	See Below
	2.1 System Overview and Interoperability		25
	2.2 Cross Domain Solution Certification		5
	<i>Security Assessment Report (SAR)</i>		As Needed
	<i>Technology Risk Report (TRR)</i>		As Needed
	<i>Policy Bypass Threat Report (PBTR)</i>		As Needed
	2.3 Encryption Certification		10
	2.4 Manufacturing Readiness		50
	2.5 Data Rights / Technical Data Package		As Needed
	2.6 Delivery Order One / Technical Maturity		As Needed
	Attachment L-2 Vol 2 VCRM Results	[Company Preface]Vol 2 VCRM.xlsx	As Needed
3	Cost/Price	[Company Preface]Vol 3 Cost-Price#.xlsx	As Needed
	Cost/Price Tables Attachment L-3 Vol 3 Pricing Workbook	[Company Preface]Vol 3 Pricing Workbook.xlsx [Company Preface]Vol 3 Pricing Workbook.xlsx	As Needed
4	Small Business	[Company Preface]Vol 4 SB.pdf	As Needed
	Attachment L-4 Small Business Participation Commitment Document	[Company Preface]Vol 4 SBPCD.pdf	
5	Past Performance	[Company Preface]Vol 5 PP#.PDF	10
	Table PP-1 Past Performance Contract Data	[Company Preface]Vol 5 Con Data.PDF and [Company Preface]Vol 5 PP-1 Con Data.xlsx	6
	Annexes		
Annex A	Joint Venture Agreements	[Company Preface] Ann-A JVA.docx or .pdf	As Needed
Annex B	DCAA/DCMA Reports, Audits, and Determinations	[Company Preface] Ann-B DCMA-DCAA Reports.pdf	As Needed
Annex C	OCI Mitigation Plan	[Company Preface] Ann-C OCI.docx or OCI.pdf	As Needed
Annex D	Small Business Subcontracting Plan	[Company Preface] Ann-D SBSP.docx or pdf	As Needed

CUI – SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

Annex E	VCRM Verification Data Artifacts	[Company Preface] Ann-E .docx or .pdf	As Needed
Annex F	CLASSIFIED (IF APPLICABLE) VCRM Verification Data Artifacts	[Company Preface] Ann-F .docx or .pdf	As Needed
Annex G	Delivery Order 0001 PWS Supporting Documentation	[Company Preface] Ann-G DO 0001 SD#.docx or .pdf	As Needed
	Attachment L-5 Delivery Order 0001 PWS	[Company Preface] Ann-G DO 0001 PWS.docx	As Needed
Annex H	Final Versions of Previous SOO/SOW/PBWSs/ Other Supporting Documentation for Past Performance Relevancy, and Past Performance	[Company Preface] Ann-H PP CR#.pdf	As Needed

Table G-2 lists the attachments provided to the Offeror within Section L.

Table G-2 Section L List of Attachments

Section L Attachment Number	Electronic File Title	Attachment Contents
L-1	Att L-1 Vol 1 KA Tables	Table KA-1: Offeror Summary Table KA-2: Offeror Information Table KA-3: Business System Status Table KA-4: Terms and Conditions
L-2	Att L-2 Vol 2 VCRM Results	VCRM Results
L-3	Att L-3 Vol 3 Pricing Workbook	Pricing Tables
L-4	Att L-4 Vol 4 SPBCD	Small Business Participation Commitment Document (SBPCD)
L-5	Att L-5 Vol 2 DO 0001 PWS	Performance Work Statement for Delivery Order 0001
L-6	Att L-6 Vol 5 PPCD.xlsx	Past Performance Contract Data
L-7	Att L-7 Vol 5 PPQ	Past Performance Questionnaire
L-8	Att L-8 Draft RFP Feedback QA Form Answers	Draft RFP Feedback QA Form Answers

4. PROPOSAL SUBMISSION AND PACKAGING

4.1 Electronic Proposal Submission

The Offeror shall submit its unclassified proposal volumes electronically through the Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE) at <https://piee.eb.mil>. For instructions on how to post an offer, please refer to the Posting Offer demo: <https://picetraining.eb.mil/wbt/sol/PostingOffer.pdf>. The Offeror shall not use any other method to submit its initial proposal including any postal delivery service, hand-carried, or other electronic systems (e.g., DOD SAFE).

It is the Offeror's responsibility to follow the registration instructions found on the PIEE website. It is advised that all potential prime Offerors and their subcontractors ensure the proper company points of contact are registered in the site based on their CAGE codes and have the proper roles assigned well in advance of the solicitation closing date. Subcontractors are only required to register in PIEE if they want to submit their proprietary proposal information separate from the prime offer. Documents submitted by the subcontractor directly to the Government must have the prime contractor's name, prime contractor's CAGE code, and RFP number on the first page of the document.

Offerors are responsible for submitting proposals, and any modifications or revisions, to reach the Government office designated in this solicitation by the date and time specified. While Offerors are encouraged to submit documents early, any submission, modification, or revision received at the Government office after the exact date and time specified is

“late” and will not be evaluated or considered for award. In the event there is acceptable evidence to establish that the submission, and any modifications or revisions were received at the Government installation designated for receipt of offers and was under the Government’s control prior to the date and time set for receipt of offers, the Procuring Contracting Officer (PCO) may accept the submission. It is also the Offeror’s responsibility to confirm receipt of proposals and all electronic communications. The Government advises Offerors to take screen shots of its submission to validate submission acceptance in the PIEE system against this solicitation. The Government will not search for proposals in PIEE submitted incorrectly.

The submission date for all Volumes shall be no later than the date and time specified in Block 9 of the SF 33 of the RFP.

If there is an unanticipated PIEE System outage within 24 hours of the proposal due date and the outage has interrupted normal Government processes so that proposals cannot be received by the exact time specified in the solicitation, the Contractor shall immediately notify the Contracting Officer. This notification shall occur prior to the proposal submission deadline and shall be made in writing. The notification may be in conjunction with verbal notification, but verbal notification alone shall not be sufficient. The Offeror shall obtain written approval from the Contracting Officer to submit the proposal via an alternate method or the Contracting Officer may advise the Offeror that the Government will follow the procedures set forth in FAR 15.107(c) for amending the solicitation closing date.

4.2 Classified Data

Offerors shall not submit classified material using the PIEE or DOD SAFE system. Offerors shall submit classified materials in accordance with the guidance in this section.

Offerors shall submit unclassified proposals to the greatest extent possible. Offerors shall minimize to the greatest extent possible the impact to readability resulting from dividing the information between the classified and unclassified portions of the proposal. If Offerors submit classified information, the unclassified portion shall reference the applicable portion of the classified portion. It is not necessary to attempt to provide an unclassified version of the information included in the classified portion of the proposal. Offerors shall comply with SECNAV M-5510.36B and associated DoD directives and procedures relating to the packaging and handling of classified materials. Offerors shall utilize the guidance below when submitting classified materials using the United States Postal Service (USPS) or through an overnight express carrier.

Preferred method of communication is electronic to Hannah McGraner at hannah.b.mcgraner@navy.smil.mil.

Offerors choosing to hand deliver classified materials shall send a written request to the Procuring Contracting Officer (PCO), at least three working days in advance of the proposal due date to coordinate delivery. Couriers must display a valid courier card and possess the appropriate level current security clearance and background investigation required to carry the information in their possession. Offerors shall not submit data classified above the Secret Level unless previously coordinated with PCO.

OUTER Label:

COMMANDING OFFICER PMA-205
ATTN: SECURITY
47123 BUSE ROAD, BUILDING 2272, SUITE 345
PATUXENT RIVER, MD 20650-1547

INNER Label:

COMMANDING OFFICER PMA-205
ATTN: Hannah McGraner
47123 BUSE ROAD, BUILDING 2272, SUITE 345
PATUXENT RIVER, MD 20650-1547

4.3 Proposal Validity Date

All proposals shall be valid for 365 days.

5. CHANGES TO SOLICITATION

The Government will post all amendments to this solicitation at <https://www.sam.gov> or <https://piee.eb.mil>.

Search the database for solicitation number N6134026R1008

6. TECHNICAL LIBRARY

A Technical Library of information directly related to the requirements of this contract is available to all Offerors with approved access.

Following a prospective Offeror's request for Technical Library access, the Offeror shall include a certified copy of DD Form 2345, Military Critical Technical Data Agreement. The Defense Logistics Information Service (DLIS) link for instructions on filling out the DD Form 2345 and obtaining certification is <https://www.dla.mil/LogisticsOperations/Services/JCP/DD2345Instructions/>.

The Offeror shall submit names and email addresses for up to three (3) designated personnel who will serve as points of contact for receiving the Technical Library through PIII Solicitation Module. Ensure at least one POC is capable of receiving classified information via SIPRNet at the collateral secret level.

The Offeror, if granted access, shall be responsible for distributing technical library data to subcontractors and team members on a "need to know" basis only. All handling, distribution, and destruction guidance specified herein shall be passed down to subcontractors and team members. Recipients of library data shall comply with all applicable laws, export controls, and distribution statements governing the data.

PART B SPECIFIC INSTRUCTIONS

PR. PREREQUISITE VOLUME

The Offeror shall address the following Prerequisites PR.1 and PR.2 in the Prerequisite Volume.

PR.1 CROSS DOMAIN SOLUTION

The Offeror shall provide in the Prerequisite Volume the nomenclature of its Cross Domain Solution that is on the National Cross Domain Solution Management Office (NCDSMO) List for Raise the Bar (RtB) 1.2 or higher in accordance with (IAW) PWS Table 2.1.1-1, references 27-30 and para 3.6.42.

PR.2 ENCRYPTION CERTIFICATION

The Offeror shall provide in the Prerequisite Volume a letter signed by the National Security Agency (NSA) identifying the End-item Cryptographic Unit (ECU) that it plans to integrate is certified to protect collateral Secret, or above data IAW PWS para 3.4.1.

1. VOLUME 1 – CONTRACT ADMINISTRATION

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-1 Table KA-1: Offeror Summary
Table KA-2: Offeror Information
Table KA-3: Business System Status
Table KA-4: Terms and Conditions

The purpose of the Contract Administration Volume is to provide the Government the ability to assess the Offeror's compliance with the information specified within the solicitation. This information is to facilitate the PCO's responsibility determination and the need to resolve information related to an Offeror's responsibility does not constitute negotiations. The Offeror shall complete all Tables (KA-1, KA-2, KA-3, and KA-4) as separate tabs in Attachment L-1, according to the instructions within the attachment, and submit a completed Attachment L-1 as a separate electronic file within Volume 1 folder. If no narrative is necessary, please simply refer to the submission of Attachment L1 under the respective Sections a through d.

The Offeror shall divide the Contract Administration volume into the Sections outlined below:

a. Offeror Summary Table KA-1

- (1) The Offeror shall complete Table KA-1 (Offeror Summary) to summarize the Offeror and its entities' pertinent information by CAGE code/SAM UEID including the proposed type and level of work to indicate a commitment of work for entity identified. Offerors shall demonstrate the proposed work commitment for each entity in Table KA-1 (Offeror Summary) in Volume 3 (Price) by associating a dollar value commensurate with the Percent of Total Proposed Cost/Price reflected in Table KA-1 (Offeror Summary). The Offeror shall ensure that each CAGE code/SAM UEID is correctly associated to the entity proposed.
- (2) For Joint Venture arrangements, the Offeror shall submit the legal document that established the Joint Venture and provide the associated agreements detailing the roles/responsibilities of each member of the JV. Note: All proposed Joint Ventures shall provide the Joint Venture legal document with agreement(s) in Annex A (Joint Venture Agreement(s)). If no JV is proposed, state "None" here.

b. **Offeror Information Table KA-2**

The Offeror shall complete table KA-2 (Offeror Information). Offerors shall provide the name, title, phone number and email address of the Offeror's principal point of contact for the solicitation. In addition, the Offeror shall identify those individuals authorized to negotiate with the Government and contractually bind the Offeror.

Offerors shall provide the mailing address, telephone, fax numbers, email address, and facility codes for the Offeror's local Defense Contract Management Agency (DCMA), Defense Contract Audit Agency (DCAA), and Government Paying Office. In addition, provide the name, telephone number, fax number, and email address for the Administrative Contracting Officer (ACO) at DCMA.

c. **Business System Status Table KA-3**

The Offeror shall complete Table KA-3 (Business Systems Status) showing the current status and or determinations regarding its business systems. If any item is not applicable to the Offeror or for contract performance, so state and justify. The Offeror shall outline the potential impact on contract execution, mitigation plan, and correction plan for any system considered inadequate or not approved by DCMA. The Offeror shall submit relevant DCAA/DCMA reports, audits, and determinations in Annex B (DCAA/DCMA Reports, Audits, and Determinations).

d. **Terms and Conditions Table KA-4**

Submission of a signed offer to the Government constitutes agreement and acceptance of the terms and conditions of the solicitation.

The Offeror shall complete Table KA-4 (Terms and Conditions). See section M for the definitions of "Exception" and "Deviation". The Offeror shall provide one of the following two statements in Table KA-4 (Terms and Conditions). If the Offeror takes any exceptions or deviations to the provisions of the solicitation and its applicable documents, the Offeror shall provide the following statement: "All exceptions and deviations taken from the solicitation terms, conditions or requirements, including any applicable documents, are included in this section". If the Offeror does not take any such exceptions or deviations, then the Offeror shall provide the following statement: "No exceptions or deviations are taken to the terms and conditions or any requirement of the solicitation."

If proposing an exception or deviation, the Offeror shall provide a detailed description for each in this section. Indicate the difficulty with the applicable requirement and the proposed solution. Specifically identify the portion of the solicitation and the proposal, which are affected. Also, identify any proposed H-clauses containing unique contract terms and conditions not covered by clauses in this solicitation and associated with an exception or deviation identified in this section.

e. **Organizational Conflict of Interest (OCI) Declaration and Mitigation Plan**

In accordance with KTXT.209-5911 "Conflict Of Interest Representation" the Offeror shall identify and address in its proposal all actual or potential OCI situations with itself, subcontractors, partners, or any other Offeror as it applies to this solicitation or state that there are no known potential OCIs. If there are no known potential OCIs, the Offeror shall include a statement affirming that there are no known actual or potential OCIs within this section. If any actual or potential OCIs are identified, then the Offeror shall submit an OCI Mitigation Plan in accordance with LTXT.209-9512 "Conflict of Interest Requirements" as Annex C (OCI Mitigation Plan). The contracting officer will determine if any unmitigated risk exists and whether the Offeror shall be eligible for

award.

f. **Model Contract Documents:**

The model contract (inclusive of Sections A through J) shall be provided as a separate file (Model Contract) within the Volume 1 folder. The Offeror Shall not embed the Model Contract as pictures within Volume 1.

The Offeror shall ensure the Model Contract includes:

- (1) Original signed SF-33 (Solicitation, Offer, and Award) cover page of the solicitation and a signed SF-30 cover page of each amendment (as applicable) with all applicable Blocks completed and acknowledgement of receipt of each amendment (as applicable) to this solicitation. The SF-33 Block 12 “fill-in” (proposal validity date) shall be completed in accordance with (IAW) Section A (Solicitation/Contract Form);
- (2) Signed Representations, Certifications, and Acknowledgements or System for Award Management (SAM) reference;
- (3) A completed copy of all Federal Acquisition Regulation (FAR), Defense Federal Acquisition Regulation Supplement (DFARS), Naval Air Systems Command (NAVAIR), and special clauses and provisions requiring contractor fill-ins.

g. **Small Business (SB) Subcontracting Plan**

Large Business Offerors shall provide their Small Business Subcontracting Plan conforming to the requirements of FAR 19.109 and DFARS 219.109 as Annex D (Small Business Subcontracting Plan). The SB Subcontracting Plan of the successful Offeror(s) will be reviewed as well as approved by the PCO prior to contract award as part of the responsibility determination. See FAR 19.109(a) (1)(i) Statutory requirements, regarding failure of the apparent successful Offeror to negotiate and submit a SB Subcontracting Plan or submit a Comprehensive or Commercial SB Subcontracting Plan acceptable to the Contracting Officer. The successful Offeror’s approved Subcontracting Plan will be incorporated into the resultant contract and contractor performance against the plan will be monitored by the Government during contract execution.

2. **VOLUME 2 – TECHNICAL**

Note: This volume shall not contain any reference to price aspects of the offer.

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-2	Vol VCRM Results
Attachment L-5	DO 0001 TCTS II PWS

The Offeror shall complete Table T-1 (Technical Cross Reference Matrix) and submit it as the first page of Volume 2 (Technical). The Technical CRM is included to help the Offeror develop its proposal and to ensure traceability of Section L paragraphs to the requirements. The Offeror’s Technical CRM may be identical to the one provided or revised to add information. For example, the Offeror’s Technical CRM may cross-reference its proposal volumes, paragraph numbers, and pages to specific solicitation requirements identified within the table, as well as other parts of the proposal that contain relevant information.

The burden of proof rests with the Offeror to demonstrate the extent to which its proposed capabilities will meet the requirements. The extent and the type of substantiation may vary, but each paragraph in the Technical Volume must be substantiated. The method of demonstration is at the discretion of the Offeror.

One method of demonstration is documented performance in an operational environment (an environment that addresses all of the operational requirements and specifications required of the system to include platform/packaging) or a simulated operational environment (a real environment that can simulate all of the operational requirements and specifications required of the system). Another method of demonstration is independent testing/evaluation in a non-operational (laboratory) environment (a simulated environment that allows for testing to determine if a system will meet the operational requirements and specifications of the system) at the system-level. The instructions below provide specific guidance for the type of demonstration. However, the Offeror is advised that application of this guidance is not a guarantee that the Offeror's

demonstration will be deemed adequate or without risk

Table T-1 Cross Reference Matrix

Section L – Proposal Instructions Volume or Paragraph Numbers / Title		RFP Section M	PWS	Other Relevant Info	Proposal Reference (Volume/ Paragraph)
2.0	Technical				
2.1	System Overview / Interoperability	I/A	3.6.25	ICDs and DRD Drawing DRD 4062AS3550	(Offeror fill-in)
2.2	Cross Domain Solutions (CDS) Certification Plan	I/A	3.6.42		(Offeror fill-in)
2.3	Encryption Certification	I/A	3.4		(Offeror fill-in)
2.4	Manufacturing Readiness	I/A	3.6.31 - 3.6.38; 3.8.16		(Offeror fill-in)
2.5	Data Rights	I/A	3.1, 3.2, 3.3, 3.4, 3.5, 3.13		(Offeror fill-in)
2.6	DO 0001 Evaluation / Technical Maturity	I/A	3.6.32, 3.8.11, 3.8.6.3(IDIQ PWS. DO1 PWS is separate)	Attachment L-2	(Offeror fill-in)

Technical proposals shall address each of the following elements:

2.1 System Overview / Interoperability

The Offeror shall provide a description of the proposed TCTS-II system. The description shall be written at the system level and describe the purpose of each subsystem. The Offeror shall provide a functional block diagram and an exploded view diagram depicting each hardware configuration item. The Offeror shall describe how the proposed design will be integrated with the legacy TCTS II system to meet the interoperability requirements.

2.2 Cross Domain Solution Certification Plan

The Offeror shall provide the Security Assessment Report (SAR), Technology Risk Report (TRR), and Policy Bypass Threat Report (PBTR) for the proposed cross domain solution. The Offeror shall provide a mitigation strategy for any Lab Based Security Assessment (LBSA) risk findings.

2.3 Encryption Certification

2.3.1 Top Secret Certification

The Offeror shall provide either a or b below:

- The proposed ECU is certified to protect Top Secret data. Note: If the NSA letter submitted for the pre-requisite evaluation indicates a TS certification, no further information is required for section 2.3. The Offeror shall reference the NSA letter within its proposal response.
- The proposed plan to achieve Top Secret Certification. The proposed plan shall include a schedule, Key and Certificate Management Approach, and the Security Verification Plan and Procedures (SVPP). The SVPP shall include TEMPEST (Red and Black separation approach) and Encryption Kernel verification at the TS level.

2.3.2 SERD 1.0 Compliance

The Offeror shall provide either a or b below:

- SERD 1.0 Compliance Plan. Offerors proposing under this path must demonstrate that their solution has achieved full Security Evaluation Requirements Document (SERD) 1.0 compliance as of the date of

proposal submission. Required Documentation: The official NSA certification documentation shall be provided. The certification must be active and remain valid IAW IDIQ PWS 3.4.1.

- b. Conditional Compliance Based on a Verifiable Plan. Offerors who are actively working towards SERD 1.0 compliance may propose under this path. Offerors shall submit a comprehensive and verifiable SERD 1.0 Compliance Plan.

2.4 Manufacturing Readiness

2.4.1. Manufacturing Readiness Level Demonstration.

The Offeror's proposal shall identify those elements (systems, subsystems, suppliers, and/or processes) being assessed for manufacturing risk and its current Manufacturing Readiness Levels using the criteria and process identified in the 2025

Manufacturing Readiness Level Deskbook (Link <http://www.dodmrl.com>). The Offeror shall describe its Manufacturing Readiness Assessment (MRA) method used to evaluate the MRL Criteria. For any element that is assessed below MRL 10, the Offeror shall deliver its Manufacturing Maturation Plans (MMPs) to achieve MRL 10 within 24 months of contract award.

2.4.2. Manufacturing Plan (CDRL A056).

The Offeror shall provide a draft manufacturing plan per CDRL A056. Within the proposal, the Offeror shall include the following:

- a. How its manufacturing management system meets the requirements of AS6500A.
- b. The major assembly sequence chart and anticipated manufacturing process flow.
- c. The manufacturing build schedule, including drawing release; tooling design, build, and proofing; key supplier deliveries; and fabrication, assembly, and delivery schedules.
- d. Facility requirements and layouts.
- e. The Offeror's plans to provide the needed manpower, facilities, and equipment for expected delivery rates per maximum quantities as defined in Section L Attachment L-3 (Pricing Workbook).

2.5 Data Rights

Terms used throughout this element are defined in FAR 2.101 or DFARS 252.227-7989.

The Government seeks rights to technical data and computer software that will allow both the Government and third parties to operate, sustain, and modify the system throughout its lifecycle without the involvement of any particular vendor.

The Data Rights Approach section of the Offeror's Technical proposal shall consist of: (1) a Technical Data and Computer Software Table, (2) Software Dependencies Diagrams, (3) Hardware Dependencies Diagrams, and (4) a Narrative.

2.5.1 Technical Data and Computer Software Table.

Table 2.5-1 is provided for reference. The Offeror shall provide a table that:

- 2.5.1.1 identifies each computer software (excluding Commercially available off the shelf (COTS) software) and other than commercial (OTC) technical data the Offeror will deliver or generate in performance of the resultant contract;
- 2.5.1.2 identifies whether the entry is technical data or computer software;
- 2.5.1.3 identifies the rights offered to the Government of each listed technical data and computer software as Unlimited, Government Purpose, Limited, Restricted, or SBIR/STTR (as described in DFARS 252.227-7989), or specifically negotiated or commercial license (if offering a specifically negotiated license(s), include the proposed license(s));
- 2.5.1.4 identifies the total number of fielded instances of each listed computer software (for technical data, write "N/A").
- 2.5.1.5 identifies each Contract Data Requirements List (CDRL) DD-1423 under which each listed technical data or computer software will be delivered (if the technical data or computer software is not associated with a CDRL DD-1423, write "N/A"); and
- 2.5.1.6 identifies whether the source code for each listed computer software will be delivered (for technical data, write "N/A").

Table 2.5-1 Notional Table

Find #	Data or Software Item Name	Technical Data or Computer Software?	Proposed Rights	# of instances	CDRL	Includes Source code
1	DSTCWAN Suite	CS	Unlimited rights	22	Software Product Package (SPP)	Yes
2	S-RAFD Models	CS	Restricted Rights	13	SPP	No
3	RIAVAN 2024	TD	Commercial	N/A	N/A	N/A

2.5.2 Software Dependencies Diagrams

Via diagram(s), the Offeror shall identify all interfaces and dependencies related to Other Than Commercial (OTC) computer software and commercial computer software (excluding COTS) that are necessary for the system's operation. The Offeror shall:

- 2.5.2.1 provide software tree diagram(s) detailing the hierarchical structure and components for each proposed computer software,
- 2.5.2.2 provide software architectural data flow diagram(s) illustrating how each computer software component interacts with other computer software components, and
- 2.5.2.3 label each computer software component in each diagram with the corresponding entry (row number) in the Technical Data and Computer Software Table provided in Section 2.5.1.

2.5.3 Hardware Dependencies Diagrams

Via diagram(s), the Offeror shall identify all interfaces and dependencies related to hardware items that are necessary for the system's operation. The Offeror shall:

- 2.5.3.1 provide hardware tree diagram(s) detailing the hierarchical structure and components for each proposed item with sufficient level of detail to determine traceability to the assertion table,
- 2.5.3.2 provide hardware interconnect diagram(s) illustrating how each hardware component interfaces with other hardware components, and
- 2.5.3.3 label each hardware component in each diagram with the corresponding entry (row number) in the Technical Data and Computer Software Table provided in Section 2.5.1.

2.5.4 Narrative.

The Offeror shall describe the extent to which the proposed rights for technical data and computer software will enable the Government and third parties to operate, sustain, and modify the system without the involvement of any particular vendor. The Offeror may include strategies for negotiating rights with subcontractors to secure more favorable terms for the Government data rights (excluding COTS) to include a contingency plan (e.g. substituting computer software components) if unable to obtain favorable terms to enable the Government and third parties to operate, sustain, and modify the proposed system without the involvement of any particular vendor.

2.6 Delivery Order 0001 / Technical Maturity

Note: System Readiness Levels (SRL) will be used to assess the maturity of a proposed solution and help identify technological risks. The contract requires SRL 7 (threshold), SRL 9 (objective). The DoD Technology Readiness Guidebook defines SRL 7 as system threshold capability demonstrated at operational performance level using operational interfaces. SRL 9 is defined as the system has achieved initial operating capability and can satisfy mission objectives.

For this element (Delivery Order 0001 / Technical Maturity), the Offeror may provide either (a) or (b) below. If the Offeror provides (a) below then paragraph 2.6.1 is not required. All Offerors shall complete paragraphs 2.6.2 and 2.6.3.

- a. A Permanent Flight Clearance (NATOPS/NATIP) for USN F/A-18 series and USN F-16 for the proposed AS solution with documentation adequate to establish the certification and fielding status of the proposed GS solution. If a permanent flight clearance is proposed the Offeror shall provide a Verification Cross Reference Matrix (VCRM) in accordance with 2.6.2.
- b. If a Permanent Flight Clearance and fielded configuration baseline does not exist for the proposed solution, or if the configuration of the proposed solution is different than the configuration authorized in the Permanent Flight Clearance or delivered to the Government and demonstrated or fielded, the Offeror shall provide a schedule to First Article delivery and a Verification Cross Reference Matrix (VCRM).

2.6.1 Schedule

The Offeror shall provide a Level 2 schedule, in MS Project, that includes any remaining verification requirements, required certifications and the SETR events necessary to meet Production Readiness Review (PRR) entrance criteria in

accordance with NAVAIRINST 4355.19E. Include in this schedule estimated dates for First Article delivery as well as any critical milestones and long-lead items that could reasonably impact First Article delivery.

The schedule shall include the Systems Engineering Technical Review (SETR) milestones, in accordance with NAVAIRINST 4355.19E, as required to mature proposed solution, obtain a permanent flight clearance, and obtain a Full Rate Production decision. The minimum required SETR events include a PRR and Physical Configuration Audit (PCA). In addition to the entry criteria specified in NAVAIRINST 4355.19A, First Articles will be required, and will require a Permanent Flight Clearance prior to conducting PRR. Any proposed solution baseline that has not been verified to meet all requirements or for which final certifications have not been obtained from all certifying agencies will also require, at a minimum, a PCA, Flight Readiness Review (FRR), and Functional Configuration Audit (FCA) and may require additional SETR events depending on the technical maturity of the proposed solution and extent of unsatisfied requirements and incomplete certifications.

The Offeror's proposal shall provide justification if it is tailoring a proposed SETR event to include, but not limited to, SRR, PDR, and CDR and schedule as supported by System Readiness Level assessment and provide its supporting documentation.

2.6.2 Verification Cross Reference Matrix (VCRM)

The Offeror shall provide the status of all requirements identified in Attachment L-2 Verification Cross Reference Matrix (VCRM) Results. In Annex E (VCRM Data Artifacts), include the data artifact, at minimum an executive summary, that satisfies each requirement. For those data artifacts that are Classified, please submit an unclassified reference in Annex E stating that a document exists. Provide a classified Annex F (CLASSIFIED VCRM Data Artifacts) that includes the data artifacts that satisfy those requirements.

2.6.3 Previously Completed Tasks

With respect to Attachment L-5 (Delivery Order 0001 PWS), the Offeror shall state in this section if it is proposing to either paragraph 2.6.3.a or 2.6.3.b.

2.6.3.a The Offeror may propose the full scope of work to be completed in accordance with Attachment L-5 (Delivery Order 0001 PWS) and no further documentation is required.

2.6.3.b The Offeror shall identify the specific DO 0001 PWS task(s), by paragraph, it has previously completed and has determined is no longer required for completion of DO 0001. Within Annex G (DO 0001 PWS Supporting Documentation), the Offeror shall provide supporting documentation demonstrating the task(s) was completed. The Offeror shall also include a tracked changes, marked up copy of Attachment L-5 within Annex G. The Government reserves the right to determine the acceptability of the previously completed work and its relevance to the current requirement.

VOLUME 3 – PRICE

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Att L-3 Vol 3 Pricing Workbook

No price or pricing information shall be included in any other proposal volume including cover letters. Offerors are responsible for submitting sufficient information to enable the Government to fully evaluate the Price proposal.

As this is a competitive acquisition with adequate price competition anticipated, any price documentation requested shall not be certified in accordance with FAR 15.403-4. However, in the event that adequate price competition does not exist after receipt of proposals, the Government reserves the right to request additional certified cost and pricing data as necessary from both the Offeror and subcontractors and may conduct negotiations with the Offeror, pursuant to FAR 15.403-3. Further, the Offeror may be required to provide a Certificate of Current Cost or Pricing Data prior to award, pursuant to FAR 15.403-4.

Any numerical data shall be in an MS Excel spreadsheet; and any narrative shall be in MS Word format. Files received in a format other than requested are unacceptable. Portable Document Format (PDF) is not acceptable, except when provided in addition to MS Excel and MS Word formats. Within all Excel spreadsheets, the Offeror shall use formulas and functions to the maximum extent possible and avoid using "value only" cells. Spreadsheets shall not be protected. The Price proposal

shall be unprotected and unlocked, with formulas intact to show mathematical operations.

Price information shall be submitted in Then Year dollars (TY\$) based on the Government’s fiscal year (1 October through 30 September). All /price information shall be submitted in United States Dollars (USD) and rounded to the nearest dollar.

Table 3-1 contains the notional procurement plan. The following is the notional procurement plan for this IDIQ contract. This procurement plan is provided for planning purposes only and Offerors are advised that the estimated procurement quantity is subject to change throughout performance of this contract. The ICS and CLS are not location specific. Table 3-2 shall be used to complete Attachment L-3 (Pricing Workbook) CLINs 0006-0012.

Table 3-1 Annual Projected Estimated Quantities for CLINS 0001 & 0002						
FISCAL YEAR	AS			GS MOST LIKELY QTY	RRU MOST LIKELY QTY	PSES MOST LIKELY QTY
	ESTIMATED MINIMUM QTY	MOST LIKELY QTY	ESTIMATED MAXIMUM QTY			
FY26	7	7	10	1	3	1
FY27	5	154	160	5	14	6
FY28	30	194	200	6	15	8
FY29	50	241	250	7	17	7
FY30	75	242	250	6	12	6
Section L-3 Volume 3 Pricing Workbook, Tabs “CLIN 0001 and CLIN 0002” cross reference	Table CLIN 0001-1			Table CLIN 0002-1	Table CLIN 0002-2	Table CLIN 0002-3

3.1 Price Narrative

Table 3-2: Contract Ceiling Price	
CLIN	Government IDIQ Contract Ceiling Price Number
0006	\$269,334
0007	\$21,616,872
0008	\$120,397,561
0009	\$18,123,201
0010	\$57,454,307
0011	\$10,897,340
0012	\$3,997,914
Total	\$232,756,529

The Offeror shall provide sufficient information to support its price as well as an explanation of all ground rules and assumptions that affect the price. The Offeror shall address any appearances of unbalanced pricing. Any apparent imbalances in the pricing (high or low) or any other anomalies should be fully explained. The Government is not soliciting any Offeror investments. However, the Offeror shall fully identify and explain any investments (e.g., company investment or management challenge or a contribution of resources and/or equipment). Other topics to be addressed include programmatic variables (e.g., inflation/escalation, location, make/buy decisions, prime/subcontractor relationships, and business base concerns, etc.)

3.2 Pricing Workbook

The Offeror shall change only the red text in Attachment L-3. The blue cell content is fixed; the Offeror shall not change the content of those cells.

The Offer shall complete Tabs (CLIN 0001, CLIN 0002, and CLIN 0003) of Attachment L-3 (Pricing Workbook). The offer shall assume the unit price for all hardware items includes the labor and facility costs associated with producing the hardware. No labor hours related to CLINS 0006 – 0015 shall be included within the production units.

For each CLIN the Government has determined minimum and maximum quantities/pricing points for the creation of pricing step ladders. The Offeror is to determine the pricing step ladders for each Tab for each fiscal year of the ordering period. Pricing shall be provided for each of the stair steps in each pricing table. To assist with offer planning, Annual Projected Estimated Quantities for CLINS 0001 & 0002 have been provided in Table 3-1 above (Annual Projected Estimated Quantities for CLINS 0001 & 0002).

For CLIN 0003, Ballast Kits (both Uninstalled & Installed):

Pricing step ladders are not to be provided; a per unit cost for each FY shall be provided. For Ballast Kits Installed, the pricing should include the amount of effort necessary for the Offeror to bring an Airborne Subsystem into the Heavy Configuration outlined in SPS para 3.2.1.2.

For CLIN 0003, Peculiar Support Equipment:

For each item proposed IAW PWS para 3.3.1.8, pricing is to be provided in the pricing table. Additional columns/rows can be added to the table to accommodate the totality of items proposed IAW PWS para 3.3.1.8.

CLIN 0004 is Not Separately Priced. Data related to production hardware as specified in PWS paragraphs 3.4 through 3.6.54.1 shall be included within the unit price for CLINS 0001-0003.

CLIN 0005 (Spares)

The Offeror shall propose an itemized list of spares along with a spares kit with sufficient sparing to support the system utilizing Tab CLIN 0005 Spares of Attachment L-3 (Pricing Workbook). The Offeror shall propose a spares kit with sufficient items/quantities for the Government to sustain the amount of items outlined in Table 3-1 above (Annual Projected Estimated Quantities for CLINS 0001 & 0002) with an annual spares kit purchase.

CLINS 0006 – 0012 (Program Management, Systems Engineering, Non-Recurring Engineering, Cyber Engineering, Logistics, Interim Support, Depot Support)

The Offeror shall complete Tab (CLINs 0006-0012 Labor Matrix) of Attachment L-3 (Pricing Workbook) using the instructions within the Attachment. The offeror shall include any DCAA Provisional Billing Rate Approval Letter, DCAA Audit Report, Forward Pricing Rate Agreements (FPRA) and/or Forward Pricing Rate Recommendations (FPRR) in effect as of the date set forth for receipt of proposals specified in Block 9 of the SF33. The offerors shall propose escalation rates for the period of the IDIQ/C that are not covered under existing FPRR or FPRA in accordance with the Global Insight index.

CLIN 0013 (Technical Data Package)

The Offeror shall propose its Technical Data Package in accordance with PWS paragraph 3.13.2.

The Offeror shall fill in Tab (CLIN 0013 TDP) of Attachment L-3 (Pricing Workbook) with its proposed TDP price.

CLIN 0014 (Travel)

The Offeror shall complete Tab 0014 in the L-3 Pricing Workbook. The Offeror shall not include Contractor fee on CLIN 0014 for Prime Contractor travel. Offerors shall add its indirect costs and applicable burdens to the Government estimated amounts to determine the proposed amounts to be provided on the Estimated Cost line. Offerors shall account for any effort associated with B001 (i.e. Trip Report) as specified in PWS paragraph 3.14.1 CLIN in the creation of any burdens.

CLIN 0015 (Data)

The Offeror shall complete Tab CLIN 0015 of L-3 Pricing Workbook using the instructions within the Attachment. The Offeror shall provide Separately Priced Data related to the execution of CLIN 0006 - 0010 as specified in PWS paragraphs 3.7 through 3.10.27. Pricing for all CDRLS not specified on Tab 0015 of Attachment L-3 Pricing Workbook which are outlined in PWS paragraphs 3.7 – 3.10.27 will be negotiated at the Task/Delivery Order level when a requirement for the CDRL delivery materializes.

Delivery Order 0001

The Offeror shall provide a complete Section B for Delivery Order 0001 in Tab D0001 Pricing L-3 Pricing Workbook. Proposed Delivery Order 0001 pricing shall align with any pricing proposed elsewhere in Attachment L-3 (Pricing Workbook). Delivery date for all CLINs shall be 24 months after award.

At award, the Government may modify Delivery Order 0001 PWS scope of work requirements (i.e., SETR Events, qualification testing) that the offeror has previously demonstrated IAW Volume 2 (Technical), element 2.6.3 (Previously Completed Work). Therefore, the offeror should not include the price of previously completed work scope within this Price section.

VOLUME 4 – SMALL BUSINESS

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-4 Vol 4 Small Business Participation Commitment Document (SBPCD)

4.1 INSTRUCTIONS FOR SMALL BUSINESS OFFERORS

Small Business Offerors are not required to submit any of the information requested in paragraphs 4.2 and 4.3 below. Instead, Small Business Offerors shall provide their current System for Award Management (SAM) profile. This shall include FAR 52.219-1 (Small Business Program Representations) expanded to display the full text of the provision, showing the NAICS code for this solicitation.

4.2 SMALL BUSINESS PARTICIPATION COMMITMENT DOCUMENT

4.1.1. Other Than Small Business (OTSB) Offerors shall complete the Small Business Participation Commitment Document (SBPCD) provided as Attachment L-4 which shall be completely stand-alone, and not require any reference to another source, volume, or proposal section. The Offerors should submit it as a part of VOLUME 4 SMALL BUSINESS (ref FAR 52.219-8 and DFARS 215.104-70(a)). The SBPCD is separate from a Subcontracting Plan that is required from Other Than Small Businesses (OTSB). Small Business Offerors are not required to submit a SBPCD.

4.1.2. OTSB Offerors shall complete the SBPCD sections as follows:

- a. SBPCD Section 1: Enter the contract and subcontracting total values. Identify a minimum small business participation goal of 8% of the total proposed price, inclusive of options. The goals and dollar values shall be calculated to the second decimal place, and can be rounded.
- b. SBPCD Section 2:
 - (1) OTSB Offerors shall identify goals for each small business socioeconomic category. The Offeror should provide the dollar figure and percentage (i.e., do not enter “N/A” or “-” to indicate a zero goal; instead enter \$0 and 0%, as applicable) for each category. All values must be mathematically correct and calculated to the second decimal place when rounded.
- c. SBPCD Section 3:
 - (1) OTSB Offerors shall list its proposed Small Business entities who are proposed as parties to the execution of the contract and who’s technical and/or pricing information have been used in the preparation of the proposal, including 1st-tier Small Business subcontractors and Small Business Joint Venture partners.
 - (2) Offerors are not required to include specific small business source(s) planned for provision of incidental items such as commercial piece parts, commercial supplies and/or incidental services.
 - (3) Representations Of Small Business Entity Size. In accordance with FAR 19.302-2(a)(1)(i), Offerors shall ensure that each small business entity listed under section 3 of the SBPCD provides either:
 - (a) A copy of the active registration in SAM for each entity that is current, accurate, and complete as of the date of the entity’s subcontract offer. The copy found in the entity’s SAM profile’s Reps & Certs section (FAR 52.219-1, Small Business Program Representations) shall be expanded to display the full text of the provision, showing the NAICS code assigned by the Prime Offeror; or
 - (b) A written representation of its small business status applicable to the size standard of the NAICS assigned by the Offeror. In accordance with FAR 19.302(s)(ii)(A), Offerors providing written representations (signed letter/memorandum) from a first-tier subcontractor listed as a small business entity in Section 3 of the SBPCD applicable to the size standard of the NAICS code assigned by the Prime Offeror, confirming its size status as a “small business;” the written representation shall be provided as part of the Offeror’s Small Business Volume, and include the following:
 - (i) A statement showing the NAICS code assigned by the Offeror for the services or supplies being acquired from the Small Business entity and confirming that the subcontractor does not exceed the size standard for the assigned NAICS code; and
 - (ii) A statement confirming that this representation is current, accurate, and complete; and
 - (iii) Full company name, mailing address Dun & Bradstreet Data Universal Numbering System (DUNS) of each proposed Small Business entity; and
 - (iv) Signed and dated by a senior company representative of the Small Business entity.

Note: See additional instructions provided in the “Instructions” column of the SBPCD Template at Attachment L-4.

4.2 SUBCONTRACTING PLAN (OTSB ONLY)

The Offeror shall submit its Subcontracting Plan as a part of Annex D (Small Business Subcontracting Plan). See FAR 19.109(a)(1)(i) Statutory Requirements, regarding failure of the apparently successful offeror to negotiate and submit a Subcontracting Plan acceptable to the Contracting Officer.

OTSB Offerors shall provide an Individual Subcontracting Plan (ISP) conforming to the requirements of FAR 19.109 and DFARS 219.109 The ISP must be consistent in terms of goals (dollars and percentages) identified in Section 2 of the SBPCD. OTSB Offerors are advised that the acceptability of the content of the Subcontracting Plan is part of the responsibility determination assessment and not part of the evaluation.

If the Offeror is subject to a Commercial Subcontracting Plan (see FAR 19.206) or is a participant in the DoD Comprehensive Subcontracting Test Program specified in DFARS 219.109 the Offeror shall submit a copy of the signed and current applicable plan.

VOLUME 5 PAST PERFORMANCE

Note: Although the Offeror shall not reference cost/price aspects of the current offer for this solicitation in this Volume, Offerors may include cost/price information that relates to contract references provided under this Past Performance volume.

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-6 Past Performance Contract Data (PPCD)

Attachment L-7 Past Performance Questionnaire (PPQ)

In Table PP -1 (Relevant Contract Summary), the Offeror shall identify up to three relevant contract references, or those portions of a relevant contract reference, whose performance is within three (3) years of the initial, final solicitation (as opposed to draft) release date and contains efforts that are similar to those efforts (e.g., end product, type of effort, contract tasks, units produced, etc.), required by this solicitation for the Prime.

Table PP-1 Relevant Contract Summary

	Contract Reference Number*	Contract Number	Contract Title
Prime	P1		
	P2		
	P3		

* Add rows as needed to list all similar contracts.

The Offeror shall provide its substantiating documents in Annex H (Final Versions of Previous SOO/SOW/PBWSs/ Other Supporting Documentation for Past Performance Relevancy, and Past Performance). The Offeror shall provide searchable electronic copies of the complete final versions of the SOW/PWS or other supporting solicitation/contract documentation from each contract or delivery/task order reference identified in Table PP-1 (Relevant Contract Summary). For the purposes of this evaluation, a delivery/task order will be considered one contract reference. For contract references where the Offeror performed as a subcontractor, the Offeror may provide the SOW/PWS of the higher tier contract (e.g. prime contract) only for context of the requirements of the submitted contract reference (e.g. subcontract).

Contract Performance Assessment Reporting System (CPARS) and Questionnaires will be the primary customer feedback data used to evaluate the Offeror's past performance. For all contracts identified that do not have a CPARS, or where the last assessment for an active contract in CPARS is more than 12 months old, the Offeror shall forward a copy of Attachment L-7 Past Performance Questionnaire to that contract's Procuring Contracting Office (PCO), Administrative Contracting Officer (ACO), and Program Manager (PM); or commercial contractor equivalents. Please forward all questionnaires within 14 calendar days from this solicitation's release date to allow adequate time for the recipient to respond.

The Offeror should not reference this solicitation's number when distributing the past performance questionnaires to customers. The Offeror shall include instructions requesting recipients to send completed PPQs via e-mail to Mr. Kurt Susnis, Contract Specialist, at kurt.a.susnis.civ@us.navy.mil and Ms. Andrea Gordon-Eubanks, Contracting Officer, at andrea.l.gordoneubanks.civ@us.navy.mil within two weeks of receipt. The Offeror shall ensure that all points of contact are current and include an email address and phone number. The Offeror shall not conduct follow-up actions with regard to this questionnaire, other than to confirm receipt by the recipient.

5.1 Relevant Contract Data

For each contract identified for past performance in Table PP-1 (Relevant Contract Summary), the Offeror shall complete the table in Attachment L-6 (Past Performance Contract Data), according to the instructions within the attachment and submit it as a separate electronic file. Please note that this form is a summary of the principal entities' relevant contract data. All detailed information and comparative analysis of the past performance contract references to this solicitation's requirements shall be provided in Volume 3 (Past Performance), Section 3.2 (Evaluation), of the Offeror's proposal. The contract references designated in Table PP-1 (Relevant Contract Summary) shall be used in completing Volume 3 (Past Performance) and all contract references shall be numbered the same throughout all of the Offeror's proposal volumes (i.e., the contracts identified as P1, P2, P3, etc.)

If a contract has D.O.s/T.O.s, provide a separate contract reference and separate PP-1 tab for each D.O/T.O. Do not provide a contract reference to the basic contract.

5.2 Contract Reference Data

The burden of providing thorough and complete past performance and systemic improvement information remains with the Offeror.

For each contract identified for past performance in Table PP-1 (Relevant Contract Summary), the Offeror shall provide data regarding relevancy, past performance information (PPI), and demonstrated systemic improvement as described below, organized by contract reference. Offerors shall present information in the proposal to demonstrate the relevancy of the Prime's past performance with respect to this solicitation's requirements. For any contract references where the Prime is aware of problems, the Offeror shall describe the issues in section 3.2.b (PPI.) For each past performance problem identified, describe the status of the systemic improvement efforts in section 3.2.c (Demonstrated Systemic Improvement.)

Demonstrated Systemic Improvement: The Offeror shall identify systemic improvement actions taken to resolve past problems. Offerors shall describe the techniques, elements, and tools used to correct problems that occurred on the CR and, if applicable, how it would apply those corrective actions to the prospective contract awarded resulting from this solicitation. The Offeror shall also provide quantifiable evidence or metrics, preferably in Government record systems, that substantiate or demonstrate claims of improvement and to demonstrate that the past problem was corrected and has not reoccurred. It is the Offeror's responsibility to explain the relevance of the data provided and substantiate that improvements from past performance problems were made. Additionally, the Offeror shall explain why the past performance problem previously experienced will not occur during performance of this prospective contract.

Section M - Evaluation Factors for Award

I. GENERAL INFORMATION

The Government expects to select one Offeror based on its proposal providing the “best value” to the Government using a tradeoff process in accordance with FAR 15.103-1, all factors considered. “Best value” means the expected outcome of an acquisition that, in the Government’s estimation, provides the greatest overall benefit in response to the requirement. The Government advises Offerors that the Government may elect to award a contract to a higher-priced Offeror if it determines that the proposal is more beneficial to the Government. However, the perceived benefits of the higher- priced proposal must merit the additional price.

A. EVALUATION PROCESS

A.1. Prerequisite

The Government will evaluate the Prerequisite Volume as a pass/meets(“ACCEPTABLE”) or fail/does not meet (“UNACCEPTABLE”) assessment. The Government will deem any Offeror who does not meet the Prerequisite Volume as UNACCEPTABLE and will eliminate them from this competition without further consideration. Offerors that meet the Prerequisite will be further evaluated as described in A.2 Evaluation below.

A.2. Evaluation

The Government will evaluate each proposal that meets Section L PR – Prerequisite Volume requirements and intends to award an Indefinite Delivery Indefinite Quantity contract and Delivery Order 0001 after negotiations to the responsible Offeror whose offer, conforming to the solicitation, provides the greatest overall benefit to the Government, all factors considered. The Government may incorporate any part of the Offeror’s proposal deemed beneficial to the Government, into the final contract within the proposed Price. The Government may use information other than that provided by the Offeror in its evaluation (e.g. past performance information, PPQ responses, etc.).

As the Government progresses through its evaluation of proposals it may further limit the competitive range if the Government finds that an Offeror’s proposal no longer has a reasonable chance of receiving an award. Therefore, the Offeror’s initial offer should contain the Offeror’s best terms from a Technical, and Price standpoint.

The Government may consider non-compliance with, exception to, or deviation from the terms, conditions, or requirements set forth in the solicitation to be a Deficiency. Additionally, the Government may consider an approach that relies on Government resources or operations (e.g., Government Furnished Property, Government Furnished Equipment, Government personnel/actions, Government Concept of Operation changes, etc.) in order to comply with a requirement that are not expressly provided under this solicitation to be a Deficiency. A proposal assessed with a Deficiency will make the offer ineligible for award.

Offerors shall submit a proposal that is certifiable in accordance with FAR 15.403-4. If, after receipt of a proposal, the PCO determines that adequate price competition does not exist and determines that none of the exceptions in FAR 15.403-1(b) apply, the Government may require the Offeror to provide certified cost and pricing data in accordance with FAR 15.403-4.

B. EVALUATION FACTORS FOR AWARD

The Government will evaluate proposals using the factors, listed below, where Technical is more important than Past Performance. Past Performance is more important than Price. Technical and Past Performance, when combined, are significantly more important than Price. Small Business is evaluated as acceptable/not-acceptable and not included in the trade off decision. Small Business, however, must be acceptable in order for the Offeror’s proposal to be eligible for award.

- A. Technical
- B. Past Performance
- C. Price

The Offeror’s proposal must demonstrate an approach that ensures the successful accomplishment of the solicitation requirements.

II. SPECIFIC INFORMATION

A. TECHNICAL

The Government will evaluate the Technical proposal to determine the Offeror's understanding of, approach to, and ability to meet the solicitation requirements. The Government will assess the Offeror's Technical proposal with respect to its compliance with the solicitation requirements and the risk associated with the Offeror's approach. The Technical evaluation will include an assessment of the following elements: (1) System Overview / Interoperability (2) Cross Domain Solutions Certification Plan, (3) Encryption Certification, (4) Manufacturing Readiness, (5) Data Rights, and (6) Delivery Order One / Technical Maturity. These elements are not weighted or rated separately as part of the Technical factor. Note: For Element (6) Section L Attachment VCRM DOI Evaluation each item listed as "Reserved" in the Government SPS will not be evaluated.

The Government will assign a Technical Rating and Technical Risk Rating. The Technical Rating is an assessment of compliance with the solicitation requirements and merit, which considers the benefits and detriments related to program performance and operations. The Government will consider the degree of benefit to the Government associated with a significant strength(s) and strength(s) when determining whether the Offeror's approach and understanding of requirements rises to a level of being thorough or exceptional.

The Technical Risk Rating considers the risk associated with the technical approach in meeting the requirement. The assessment of technical risk considers the potential for disruption of schedule, degradation of performance, the need to increase Government oversight, or the likelihood of unsuccessful contract performance. Appreciably exceeding requirements can potentially produce performance or operational benefits. Beyond the point where there is no additional performance or operational benefit, the Government may assess the benefit as risk reduction.

The Government may assess and categorize a failure to address part or parts of the technical factor caused by a lack of information as weakness(es), significant weakness (es), or deficiency (ies). The Government may consider a combination of significant weaknesses that increase the risk of unsuccessful contract performance to an unacceptable level as a deficiency.

The Government advises Offerors that during the evaluation process, a Technical Rating of "Unacceptable" or a Technical Risk Rating of "Unacceptable" is considered unawardable and may result in the entire proposal being found unacceptable.

With respect to the (1) System Overview / Interoperability technical element, the Government will evaluate compliance and risk. Offerors may receive significant strengths, strengths, deficiencies, risk reducers, weaknesses, or significant weaknesses.

With respect to the (2) Cross Domain Solutions Certification Plan, the Government will evaluate risk. Offerors may receive risk reducers, weaknesses, or significant weaknesses based on documented findings and associated risk mitigation strategies. The Government will assess the Security Assessment Report (SAR), Technology Risk Report (TRR), and Policy Bypass Threat Report (PBTR) for the proposed cross domain solution to determine whether the risk mitigation strategies address the identified risk findings.

With respect to the (3) Encryption Certification Plan, the Government will evaluate risk. The Government will assess the offerors' Top Secret Certification and/or plan to achieve an NSA Top Secret certification, the offerors approach to verifying TEMPEST (Red and Black separation), and Encryption Kernel requirements at the Top Secret level. The Government will evaluate the offeror's proposed SERD 1.0 compliance path in accordance with Section L. This factor is fundamental to technical acceptability for SERD 1.0. The Offeror may receive risk reducers, weaknesses, or significant weaknesses.

With respect to the (4) Manufacturing Readiness element, the Government will evaluate risk. The Government will assess the offeror's proposed Manufacturing Readiness Level to determine whether the proposed MRL meets requirements. The Government will evaluate the offerors Manufacturing Plan to determine the likelihood that the Offerors proposed approach will meet the production requirements per maximum quantities as defined in Attachment L-3 (Pricing Workbook). The Offeror may receive risk reducers, weaknesses, or significant weaknesses.

With respect to the (5) Data Rights technical element, the Government will evaluate the extent to which the proposed license rights in technical data and computer software enable the Government and third parties to operate, sustain, and modify the system throughout its lifecycle without the involvement of any particular vendor. This evaluation will consider

both the benefits and risks associated with the proposed approach. This includes, but is not limited to, limitations on future competition and risks in newly developed computer software / hardware versus fielded operational systems.

Approaches that enable the Government to operate, sustain, and modify the system (without the involvement of any particular vendor) may be assessed as a Strength. Approaches that also enable third parties to operate, sustain, and modify the system (without the involvement of any particular vendor) may be assessed as a relatively more significant Strength. Additionally, approaches that enable the Government and third parties to reproduce the system may be assessed as a Strength or Significant Strength.

With respect to the (6) Delivery Order One / Technical Maturity Technical element, the Government will evaluate compliance and the risk in meeting PWS 3.6.32 requirements. Offerors may receive significant strengths, strengths, deficiencies, risk reducers, weaknesses, or significant weaknesses. The Government will evaluate the SRL for the air and ground systems. A Permanent Flight Clearance (NATOPS/NATIP) for USN F/A-18 series and USN F-16 for the proposed solution will demonstrate SRL 9 for the Air Subsystem (AS). In the absence of Permanent Flight Clearance, verification results will be used to assess whether the proposed design meets the threshold SRL 7. Delivered and operational Ground Subsystem (GS) components of the same baseline configuration as the proposed solution will demonstrate SRL 9 for the GS components.

At award, the Government may modify Delivery Order 0001 PWS scope of work requirements (i.e., SETR Events, qualification testing) that the offeror has previously demonstrated IAW Volume 2 (Technical), element 2.6.3 (Previously Completed Work).

B. PRICE

The Government will evaluate the Price Volume, including Attachment L-3 (Pricing Workbook) to establish a contract ceiling price (CCP) and a best value price (BVP).

The following terms and calculations apply to the price evaluation.

Table Section M Price Terms and Calculations		
Term	Calculation	Purpose
Contract Ceiling Price (CCP)	CCP = EP + (SUM of CLINS 0005, 0006, 0007, 0008, 0009, 0010, 0011, 0012, and 0015))	Establishes the Overall IDIQ Ceiling Price. The CCP will not be considered within the best value tradeoff decision.
Best Value Price (BVP)	BVP = (EP + DO 0001)	Establishes the evaluated price for the best value tradeoff decision. *
Evaluated Price (EP)	EP = SUM of CLINS 0001, 0002, 0003, 0013, and 0014:	Establishes the Evaluated Price for the IDIQ.
Delivery Order One (DO 0001)	DO 0001 = SUM of all CLINs on “DO 0001 Pricing” tab CLINS	Establishes the Evaluated Price for Delivery Order One

**The Best Value Tradeoff Decision will only consider the Best Value Price.*

The total BVP calculated price will be calculated as the sum of paragraphs B.1 through B.5

B.1. The total EP calculated price for FFP CLINs 0001 and 0002.

For the following portions of CLINS and Tables the Government will calculate CLINS 0001 and 0002 using the following equation: From the Attachment L-3 (Pricing Workbook), the Government will average the Offeror's proposed unit prices across the Offeror's proposed number of stair steps, then multiply the Average Unit price by the maximum quantity for each year. The Government will sum all Yearly Price calculations.

B.2 The total EP calculated price for FFP CLIN 0003.

For CLIN 0003 the Government will sum paragraphs B.2.1 through B.2.3.

B.2.1. Calculations specifically, for Attachment L-3 (Pricing Workbook), Tables CLIN 0003-1 Mission Operator Console, CLIN 0003-2 Dual Pod Shipping Containers, CLIN 0003-5 ASU-1 and ASU-2, and CLIN 0003-6 Data Recording Devices.

CUI – SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

From the Section Attachment L-3 (Pricing Workbook), the Government will average the Offeror's proposed unit prices across the Offeror's proposed number of stair steps, then multiply the Average Unit price by the maximum quantity for each year. The Government will sum all Yearly Price calculations.

B.2.2 For CLIN 0003 Attachment L-3 (Pricing Workbook), Table CLIN 0003-3 Ballast Kits Uninstalled and CLIN 0003-4 Installed, I, E, Heavy Pod Configuration, the Government will sum all Yearly Price unit prices.

B.2.3 For CLIN 0003 Attachment L-3 (Pricing Workbook), Table CLIN 0003-7 PSE the Government will sum all Yearly Price unit prices for all proposed PSE.

B.3 The BVP will include the proposed price for CLIN 0013 Technical Data Package.

B.4 The Offeror shall propose all of its burdens. To calculate the CLIN 0014 price, the Government will apply the burdens to the \$5,000,000 travel estimate. The BVP will include the proposed price for Travel CLIN 0014.

B.5. The Attachment L-3 (Pricing Workbook), tab “DO 0001 Pricing” total BVP calculated price for Delivery Order 0001.

To establish a contract ceiling price (CCP) the government will sum B.6 - B.11.

B.6 For FFP CLINs 0001 and 0002.

The Government will calculate CLINS 0001 and 0002 using the following equation: From the Attachment L-3 (Pricing Workbook), the Government will multiply the highest stair step price times the max quantity for each year. The Government will sum all Yearly Price calculations.

B.7 For FFP CLIN 0003

The Government will sum paragraphs B.7.1 - B.7.3

B.7.1. Calculations specifically, for Attachment L-3 (Pricing Workbook), Tables CLIN 0003-1 Mission Operator Console, CLIN 0003-2 Dual Pod Shipping Containers, CLIN 0003-5 ASU-1 and ASU-2, and CLIN 0003-6 Data Recording Devices.

From the Attachment L-3 (Pricing Workbook), the Government will multiply the highest stair step price times the max quantity for each year. The Government will sum all Yearly Price calculations.

B.7.2 For CLIN 0003 Attachment L-3 (Pricing Workbook), Table CLIN 0003-3 Ballast Kits Uninstalled and CLIN 0003-4 Installed, I, E, Heavy Pod Configuration, the Government will sum all Yearly Price unit prices.

B.7.3 For CLIN 0003 Attachment L-3 (Pricing Workbook), Table CLIN 0003-7 PSE the Government will sum all Yearly Price unit prices multiplied by the quantity for all proposed PSE.

B.8 The Government will utilize an estimated amount of \$51,000,000 for the CCP for CLIN 0005.

B.9 The Government will utilize an estimated amount of \$232,756,529 for the CCP for CLINs 0006 through 0012.

B.10 The CCP will include the proposed price for CLIN 0013 Technical Data Package and CLIN 00015 Priced Data.

B.11 The Offeror shall propose all of its burdens. To calculate the CLIN 0014 price, the Government will apply the burdens to the \$5,000,000 travel estimate. The CCP will include the proposed price for Travel CLIN 0014.

B.12 Reasonableness. In accordance with FAR 15.404-1(a) the Government will use price analysis to support its determination that the CCP and BVP are fair and reasonable. The Government expects adequate competition in response to this solicitation and that competition will establish a fair and reasonable price per FAR 15.404-1(b)(1). However, if adequate price competition does not exist, the Government will perform further price analysis in accordance with FAR 15.404-1(b)(2-7) or a cost analysis in accordance with FAR 15.404-2.

The Government anticipates evaluating the proposed direct & indirect rates in Tab (CLINs 0006-0012 Labor Matrix) of Attachment L-3 (Pricing Workbook) for reasonableness as per FAR 15.404-1(b)(7). The

CUI – SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

Government will perform an analysis of the rates utilizing the provided DCAA Provisional Billing Rate Approval Letter, DCAA Audit Report, Forward Pricing Rate Agreements (FPRA) and/or Forward Pricing Rate Recommendations (FPRR) to confirm the proposed rates are in line with the DCMA/DCAA approved rate documentation. The offerors shall propose escalation rates for the period of the IDIQ/C that are not covered under existing FPRR or FPRA in accordance with the Global Insight index.. Any proposed rates not found to be in accordance with this documentation will be determined to be unreasonable & may deem an offerors proposal ineligible for award.

B.13 Unbalanced Pricing. The Government will evaluate CLINs 0001-0003 for unbalanced pricing. In doing so the Government will compare the proposed prices of each step to the proposed prices of other steps for each item (e.g. Remote Range Unit, PSE). If the Government finds that unbalanced pricing exists, it may render the proposal ineligible for award in accordance with FAR 15.404-1(g)(3).

In its evaluation, the Government may use commercial published data, same or similar DoD contracts, Government estimates, industry standards, DCAA audit information, or other information as deemed appropriate by the Government.

C. SMALL BUSINESS

The Government will evaluate each Offeror's approach and understanding of Small business Objectives through:

- a. The Offeror proposed to meet or exceed the minimum small business participation goal of not less than 8% of the total proposed price inclusive of options; and dollar and percent values are mathematically correct (calculated to the second decimal place when rounded); as proposed under section 1 of the SBPCD. If the Offeror is required to submit an Individual Subcontract Plan (ISP) the goals in the SBPCD the Government will verify that the goals in the SBPCD are consistent with those in the ISP. If the ISP is inconsistent with the SBPCD and less than the required goal of 8% the small business factor will be evaluated as "Unacceptable".
- b. The Offeror identified goals for each small business socioeconomic category as proposed under section 2 of the SBPCD.
- c. Listed small business entities under section 3 of the SBPCD have an active registration in SAM that is current, accurate, and complete or provided a written representation for each small business entity's status applicable to the size standard of the NAICS assigned by the Offeror.
- d. In accordance with FAR 15.104(c)(2), the Government will evaluate the Small Business Factor as "Acceptable" when the small business Offeror provides information supporting that it is a small business.

A Small Business rating of "acceptable" is required for a proposal to be eligible for award and is not part of the tradeoff process.

D. PAST PERFORMANCE

The Government will evaluate the Offeror's, demonstrated past performance in delivering quality products and services similar to the solicitation requirements. The Government will base its Past Performance evaluation using customer feedback of Contract References (CRs) in meeting the performance areas of 1) Technical/Quality requirements, 2) schedule requirements, 3) Management, and 4) Small Business Utilization. The Government will consider the recency and relevancy of the CR and past performance information, source of the information, context of the data, and general trends in performance.

The Government will assess each contract reference and assign a relevancy rating of Relevant (R), or Not Relevant (NR) based on the definitions in Section M. III., B. Other Evaluation Definitions. The Government will not include contract references rated as Not Relevant (NR) in the Past Performance evaluation.

The Government will only consider the past performance of the Principal Entity. Only contract references that identify the contractor as having the same CAGE code/UEI as the Principal Entity are relevant.

The Government will consider performance problems not addressed by the Offeror to still exist. However, the Government may consider discounting problems addressed through demonstrated systemic improvement. The Government will evaluate

the degree to which the Offeror can demonstrate that it has successfully applied continuous systemic improvement to resolve past performance problems.

The Government will assign a separate Performance Rating of Acceptable or Unacceptable based on an integrated assessment of all performance areas for the Offeror's relevant past performance and systemic improvement. In the case of an Offeror without a record of past performance or for whom information on past performance is not available, the Offeror will receive a rating of "Acceptable." Under Past Performance, the Government will evaluate how well an Offeror has performed similar work before. As such, the term "performance record" in the Performance Confidence Assessment Rating definition is referring to the records that indicate how well the Offeror has performed on recent/relevant work (e.g., CPARs and questionnaires).

The Government reserves the right to use information to evaluate past performance obtained from sources other than those identified by the Offeror. The Government may send additional PPQs and/or obtain information from sources identified by the Government evaluation team.

III. DEFINITIONS**A. EVALUATION RATINGS AND RISK ASSESSMENT DEFINITIONS****PREREQUISITE ASSESSMENT DEFINITIONS**

For the Prerequisite factor, the Rating assignments reflect the Government's assessment of the Offeror's approach to meeting the Prerequisite Volume for the solicitation.

Rating	Description
Acceptable/Pass/Meets the Solicitation	Proposal meets the Section L Prerequisite Volume requirements.
Unacceptable	Proposal does not meet the Section L Prerequisite Volume requirements.

EVALUATION RATINGS DEFINITIONS

Technical Ratings: The Technical Rating assignments reflect the Government's assessment of the Offeror's technical solution for meeting the Government's requirement.

Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple Strengths and/or at least one Significant Strength.
Purple	Good	Proposal demonstrates a thorough approach and understanding of the requirements and contains at least one Strength.
Green	Acceptable	Proposal demonstrates an adequate approach and understanding of the requirements.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more Deficiencies and is un-awardable.

RISK ASSESSMENT DEFINITIONS

Technical Risk Rating: The risk assignments reflect the Government's assessment of potential for disruption of schedule, degradation of performance, the need for increased Government oversight, or the likelihood of unsuccessful contract performance.

Rating	Description
Low	Proposal may contain Weakness/Weaknesses which have low potential to cause disruption of schedule, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a Significant Weakness or combination of Weaknesses which may have a moderate potential to cause disruption of schedule, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a Significant Weakness or combination of Weaknesses which is likely to have high potential to cause significant disruption of schedule, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a Deficiency or a combination of Significant Weaknesses that causes an unacceptable level of risk of unsuccessful performance.

SMALL BUSINESS ASSESSMENT DEFINITIONS

For the small business factor, the Small Business Rating assignments reflect the Government’s assessment of the Offeror’s approach to meeting Small Business objectives for the solicitation.

Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Unacceptable	Proposal does not meet small business objectives.

PAST PERFORMANCE RATINGS

For the Past Performance factor, the Past Performance rating reflects the Government’s assessment of the offeror’s past performance record. A rating of Acceptable or Unacceptable will be assigned.

Adjectival Rating	Description
Acceptable	Based on the offeror’s performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror’s performance record is unknown.
Unacceptable	Based on the offeror’s performance record, the Government does not have a reasonable expectation that the offeror will be able to successfully perform the required effort.

B. OTHER EVALUATION DEFINITIONS

Significant Strength	An aspect of an Offeror’s proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
Strength	An aspect of an Offeror’s proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.
Risk Reducer	An aspect of an Offeror’s proposal that reduces risk in a way that will be advantageous to the Government during contract performance.
Weakness (FAR 15.001)	“Weakness” means a flaw in the proposal that increases the risk of unsuccessful contract performance.
Significant Weakness (FAR 15.001)	A “Significant Weakness” in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.
Deficiency (FAR 15.001)	“Deficiency” is any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission.
Exception	An exception occurs if/when an Offeror states it will not comply with a solicitation requirement, usually involving contract terms and conditions.
Deviation	A deviation occurs if/when an Offeror states it will not comply with a solicitation requirement but proposes an alternative to meet the intent of the requirement, usually involving a Statement of Work or Performance Work Statement requirement.
Principal Entity	The Prime Contractor with its Commercial and Government Entity (CAGE) code identified in Block 15A on Standard Form (SF)-33, Solicitation, Offer, and Award.

CUI – SOURCE SELECTION INFORMATION – SEE FAR 2.101 and 3.104

Recency	A measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant. Past performance or corporate experience references that are older than 3 years from the solicitation release date is not considered recent and therefore is not considered relevant. As it pertains to recent past performance, the more recent past performance references are considered better indicators of future performance.
Relevancy	A measure of the extent of similarity between the solicitation efforts effort, complexity, dollar value, contract type, or other comparable attributes of past performance examples and the source solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.
Relevant (R)	Present/past performance effort involved similar of the scope and magnitude of effort and complexities this solicitation requires. Scope: Aircraft Combat Maneuvering and Instrumentation (ACMI) training system unit that provides airborne encryption for air to air and air to ground data link capability Magnitude: Number of ACMI training system units produced is more than 20 per year Complexity: System that includes NSA-approved Type 1 High Assurance encryption
Not Relevant (NR)	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires (i.e., does not meet the above definition of Relevant); or the past performance reference meets any of the conditions below: (1) Contracts from any entity that is not a principal entity, Contracts from a different physical location (e.g., with different CAGE code/DUNS) than the entity proposed in Table KA-1 (Offeror Summary); (2) Contracts, or those portions of contracts, whose performance is older than 3 years from the solicitation release date (i.e. Block 5 on Standard Form (SF)-33, Solicitation, Offer, and Award).